FALVEY INSURANCE GROUP

Thank you for entrusting Falvey Insurance Group with your client's cargo insurance program.

At Falvey, we are committed to finding you solutions that make a tangible difference at an affordable price.

Falvey is an MGA writing on behalf of the following Insurance Companies:

LLOYD'S

Lloyd's of London is an Insurance Market that dates back to 1686. It is the center of specialty insurance and unique solutions. Lloyd's currently enjoys an A+ rating from Standard & Poor's, AA- from Fitch and A from A.M. Best

GREAT AMERICAN INSURANCE GROUP

Based in Cincinnati, Ohio, the operations of Great American Insurance Group are engaged primarily in property and casualty insurance, focusing on specialty commercial products for businesses. Great American Insurance Company has received an "A" (Excellent) or higher rating from the A.M. Best Company for more than 110 years (most recent rating evaluation of "A+" (Superior) affirmed December 15, 2023.)

ACCREDITED
INSURANCE PROGRAM MANAGEMENT

Accredited Insurance Program Management is a leading program manager offering a broad range of insurance solutions in 50 states and the District of Columbia. Accredited Insurance Program Management is underwritten on an admitted basis by Accredited Surety and Casualty Company, Inc. and on a surplus lines basis by Accredited Specialty Insurance Company, both of which are rated A- (Excellent) by A.M. Best with a Financial Size Rating of IX.

Sentry®

Sentry Specialty, a member of Sentry Insurance Group (Sentry), writes non-admitted business through Point Excess and Surplus Insurance Company. Sentry has been rated A+ (superior) by AM Best since 1992* and is a fortune 1000 company.

***Sentry has an AM Best Financial Strength Rating (FSR) of A+ (superior), current as of June 2023. See ambest.com/ratings/guide.pdf for rating information.**

FALVEY INSURANCE GROUP

66 Whitecap Drive
North Kingstown, RI 02852
401.792.0144
Fax – 401.667.0573

Contact Directory

At Falvey Insurance Group, we are committed to providing quality service to our customers. Below you will find a directory to guide you in the event you need to contact a member of our team for assistance.

For questions regarding **claims**

claims@falveyins.com
24-hr Hotline – 877.572.5553
Download our Claims Manual:
falveyinsurancegroup.com/file-claim/

For questions regarding **invoices or finance**

finance@falveyins.com
401.675.9231
Fax – 401.667.0573

For questions regarding **policy**

Please contact your Underwriter. If they are unavailable, please contact: insure@falveyins.com
401.675.9210
Fax – 401.667.0573

For more information – falveyinsurancegroup.com

FALVEY INSURANCE GROUP

The Specialized Insurance Experts
66 WHITECAP DR., NORTH KINGSTOWN, RI 02852
401.792.0144 | FALVEYINSURANCEGROUP.COM

Complaints Procedure - Our Commitment to Service

Falvey Insurance Group is dedicated to providing a world-class level of service, which is why if our service does not meet your expected standards, please contact us as soon as you can. We will do our best to address your concerns as quickly as possible.

To help us most efficiently resolve your concerns, we ask that you provide us with as much information as possible, including:

- Your full name, address and contact details
- The details of your complaint
- Any relevant reference number - including policy or claims numbers. These can be found on your insurance documentation
- Details of any company that you purchased your insurance through
    - Falvey Cargo Underwriting, Ltd.
    - Falvey Shippers Insurance
    - Safe Harbor Pollution Insurance

You can contact **Robert Falvey**, General Counsel, in one of the following ways:
By telephone – +1(401) 675-9212
By e-mail – complaints@falveyinsurancegroup.com
Or you can write to us at the following address:

Robert Falvey
General Counsel
Falvey Insurance Group
66 Whitecap Drive
North Kingstown, RI 02852

If your complaint is not resolved to your satisfaction by the close of the third business day following receipt of your complaint, we will provide written notice of the expected turnaround time. Should you remain dissatisfied with the response that you receive from Falvey, you may if you wish, refer your complaint to Lloyd's (only in instances where the policy was underwritten by a Lloyd's Syndicate). Lloyd's complaints procedures are set out in the leaflet "Your Complaint – How We Can Help" available at www.lloyds.com/complaintshandling. Lloyd's will investigate the matter and provide a final response. Lloyd's contact details are as follows:

Complaints
Lloyd's
One Lime Street
London EC3M 7HA
Email: complaints@lloyds.com
Telephone: +44 (0)20 7327 5693
Website: www.lloyds.com/complaints

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MARINE/WAR INSURANCE DECLARATIONS PAGE

NAMED INSURED *(Clause 1)*	Indaptus Therapeutics, Inc. 3 Columbus Circle, 15th Floor New York, NY 10019	**Issue Date:** 07/08/2025 **Policy No.** FAL-175599 WC-FAL-175599
GOODS INSURED AND INSURABLE INTEREST *(Clause 5)*	Consisting principally of: **Decoy 20 GMP drug product**	
ATTACHMENT AND TERMINATION *(Clause 3)*	Effective from 12:00 am, July 26, 2025 to 12:01am, July 26, 2026	
DEPOSIT PREMIUM *(Clause 11)*	**Premium:** 8,250.00 **TRIA**: 450.00 **Total Premium**: 8,700.00 **Payment Terms**: Inception In the event of mid-term cancellation or in the event that the actual rate basis is less than the estimated rate basis, no return premium shall be given to the Assured, it being understood and agreed that this premium is a minimum, fully earned premium. For goods in transit it is understood and agreed that 10% of the above stated premium is in consideration of War and SR&CC coverage.	
RATES	**Location Rate:** Flat **Transit Rate:** Flat	

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MARINE/WAR INSURANCE DECLARATIONS PAGE

BASIS OF VALUATION *(Clause 10)*	As per policy form, unless amended below or by endorsement. Unless specifically provided elsewhere in this policy and/or it endorsements or "As Per Declarations" or instructions to the contrary are given by The Insured, the goods and/or merchandise and/or property insured under this policy shall be valued as follows: 10.1.1 Raw Materials, Work in Process, and Finished Goods - valued at replacement cost. Replacement cost to be defined as the cost of labor, materials, and other necessary expenses directly related to the damaged product, less any unincurred expenses and excluding overhead, research, and development. 10.1.2 All Other Goods and/or Merchandise - valued at invoice value, or if no invoice value, at replacement cost. Replacement cost to be defined as the cost to replace with like kind, quality, and condition. 10.1.3 Used Goods and/or Used Merchandise and/or Used Property and/or Furniture Fixtures and Equipment (FFE): Valued at replacement cost for goods and/or merchandise and/or property at the time of loss at the originally intended destination except that in respect to items for which replacement with identical property is impossible or impractical, the replacement cost shall be the cost of items similar to the damaged property and intended to perform the same function, and which may include improvements and technological advances. 10.1.4 If Shipped Free of Charge, or for an Amount Not Reflective of Actual Value or in the Absence of an Invoice: Valued at The Insured's cost to replace at time of loss at the originally intended destination, including all material, labor and direct costs. In the event The Insured receives instructions to value the goods and/or merchandise and/or property on basis differing from the valuation provisions contained in this policy and/or its endorsements or "As Per Declaration", then the goods and/or merchandise and/or property are to be valued in accordance with such instructions, provided such valuation is declared and not objected to by The Insurer prior to any known or reported loss or accident. Privilege is granted to The Insured to insure in foreign currencies. When the privilege is exercised, the proceeds paid under this policy are payable in the same currencies; however, at the option of The Insured, the proceeds under this policy are payable in United States dollars at the rate of exchange current on the date of the original sale or transaction as evidenced by invoice or contract or on the bill of lading shipment date, at The Insured's option.

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MARINE/WAR INSURANCE DECLARATIONS PAGE

LIMIT OF INSURANCE - TRANSIT *(Clause 9)*	500,000.00	Per any one Air Conveyance
	50,000.00	Per any one FedEx, UPS, DHL (non-specialized service division) or similar parcel carrier conveyance
	50,000.00	Per any one Exhibitions, Trade Fairs, Demonstrations or Consignments
	50,000.00	Expediting Expense per Clause 44
	10,000.00	Per any one package via Governmental Mail Service
	500,000.00	Per any one Land Conveyance
	25,000.00	Per any one Messenger
	10,000.00	Per any one Non-Containerized On-Deck Bill of Lading Conveyance
	50,000.00	Research Animal(s) while on any one approved conveyance or at any one approved location
	50,000.00	Per any one Salesperson for Salesperson's Samples
	100,000.00	Per any one Vessel Conveyance
	500,000.00	War Limit
DEDUCTIBLE *(Clause 7)*	25,000.00	Any one loss or occurrence caused by or resulting from Spoilage, Deterioration and/or Decay
	10,000.00	Per Any One Loss or Occurrence
GEOGRAPHICAL SCOPE *(Clause 8)*	This policy covers all lawful shipments, at and from ports and/or places in the world to and at ports and/or places in the world directly or via ports and/or places in any order, including the risk of transshipment by land, air, water or otherwise and including worldwide inland conveyances **however absolutely excluding coverage to, from and within Russia and/or Ukraine and /or Belarus**.	
INSURING CONDITIONS *(Clause 6)*	As Per Policy Form: F00691 042018 ed ~ Against all risks of physical loss or damage from any external cause, except those risks as may be excluded by the warranties or exclusions specified in this policy, but always subject to the conditions of coverage specified in this clause.	

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MARINE/WAR INSURANCE DECLARATIONS PAGE

ADDITIONAL WARRANTIES	It is warranted by the Assured and a condition precedent of this insurance that the Assured will, in utmost good faith, endeavor to ensure that the interest is in sound condition and suitably prepared and packed at the commencement of transit and, further, the Assured will have established a reasonable expectation that the interest insured will arrive at the final destination in sound condition. It is warranted by the Assured and a condition precedent of this insurance that temperature-sensitive goods are shipped using a specialized shipping service designed to maintain temperature requirements of the goods insured throughout transit. **It is further understood and agreed that this Warranty does not apply to the Non-Specialized Carrier sub-limit provided on Declarations Page.** It is understood and agreed that non-compliance with the above warranties voids coverage for loss, damage or expense caused by or resulting from spoilage, deterioration, decay and/or delay (provided that spoilage, deterioration, decay and/or delay are included under the Insuring Conditions or Conditions of Coverage).
ENDORSEMENTS / ADDITIONAL COVERAGES (as hereto attached to this policy via signed Endorsement)	YES NO ● ○ Inventory / Storage ○ ● Installation / Evaluation ○ ● Perishable Goods ● ○ 5 Powers War Exclusion Clause ● ○ Marine Cyber Endorsement LMA5403 ● ○ Deductible ● ○ Insuring Conditions ● ○ Communicable Disease Exclusion (Cargo) ● ○ Research Animals and Pair-Sets Clause ● ○ Windstorm Definition Amended ● ○ Processing - Exclusion ● ○ Governing Law and Jurisdiction ● ○ S.R. & C.C. Endorsement (Form No. 12A)
SPECIAL CONDITIONS	It is understood and agreed that TRIA and/or Cyber for Cargo and/or Worldwide Terrorism premiums, if bound, will not be included in the No Claims Bonus calculation.
NOTICES	Complaints Procedure

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MARINE/WAR INSURANCE DECLARATIONS PAGE

TRIA	You have elected to purchase coverage for losses arising out of acts of terrorism**, as defined in Section 102(1) of the Terrorism Risk Insurance Act, as amended in 2019**. The term "act of terrorism" means any act or acts that are certified by the Secretary of the Treasury—in consultation with the Secretary of Homeland Security, and the Attorney General of the United States—to be an act of terrorism; to be a violent act or an act that is dangerous to human life, property, or infrastructure; to have resulted in damage within the United States, or outside the United States in the case of certain air carriers or vessels or the premises of a United States mission; and to have been committed by an individual or individuals as part of an effort to coerce the civilian population of the United States or to influence the policy or affect the conduct of the United States Government by coercion. Under your coverage, any losses resulting from certified acts of terrorism may be partially reimbursed by the United States Government under a formula established by the Terrorism Risk Insurance Act, as amended. However, your policy may contain other exclusions which might affect your coverage, such as an exclusion for nuclear events. Under the formula, the United States Government generally reimburses 80% beginning on January 1, 2020, of covered terrorism losses exceeding the statutorily established deductible paid by the insurance company providing the coverage. The Terrorism Risk Insurance Act, as amended, contains a $100 billion cap that limits U.S. Government reimbursement as well as insurers' liability for losses resulting from certified acts of terrorism when the amount of such losses exceeds $100 billion in any one calendar year. If the aggregate insured losses for all insurers exceed $100 billion, your coverage may be reduced. **The premium charged for this coverage is above and does not include any charges for the portion of loss covered by the Federal Government under the Act. Any coverage you purchase for "acts of terrorism" shall expire at 12:00 midnight December 31, 2027, the date on which the TRIA Program is scheduled to terminate, or the expiry date of the policy whichever occurs first, and shall not cover any losses or events which arise after the earlier of these dates.**
BROKER	Marsh & McLennan Insurance Agency LLC 9171 Towne Center Drive Suite 100 San Diego, CA 92122
CONTRACT FORMS AND CLAUSES	Policy Forms(s): F00691 042018 ed War Contract v01-Jul-2013
CURRENCY	All references to currency on this policy reflect US Dollars

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MARINE/WAR INSURANCE DECLARATIONS PAGE

The terms and conditions offered hereunder may differ from the applicant's prior policy or from what the broker or agent has requested on the submission.

This policy may be subject to Local Taxes not evident at the time of placing or confirming cover and therefore these terms will be net of any such taxes. This policy has been underwritten on the basis that goods insured are at approved static locations for less than 90 days. Goods at approved static locations for terms greater than 90 days may give rise to local taxes in Country of risk. **Where such taxes are payable by the Assured directly or through the Producing Broker this will be the responsibility of said parties.**

The liability of the Underwriters is several and not joint and is limited solely to the extent of their proportions as per the below. The Underwriters are not responsible for the subscription of any co-scribing Underwriter who for any reason does not satisfy all or part of its obligations.

This is to certify that the undersigned have arranged insurance as hereinafter specified:

- 74% with Underwriters at Lloyd's, London England as per covernote B0509MARCR2550000
- 10% with Point Excess & Surplus Ins. Co.
- 10% with Accredited Specialty Insurance Company
- 6% with Great American E & S Insurance Company

Issued at North Kingstown, Rhode Island, as per authority granted Falvey Cargo Underwriting July 08, 2025.

By:

Signature J. Michael Falvey
Authorized Representative

FALVEY INSURANCE GROUP

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INSTALLATION / EVALUATION DETAILS PAGE

Assured	Indaptus Therapeutics, Inc.	**Effective Date:** **Policy No.**	07/26/2025 FAL-175599 WC-FAL-175599
Installation / Evaluation List of Locations *(Clause 62)*	Named Locations: NOT COVERED Unnamed Location: NOT COVERED		

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INVENTORY/STORAGE DETAILS PAGE

Assured	Indaptus Therapeutics, Inc.	**Effective Date:** 07/26/2025 **Policy No.** FAL-175599 WC-FAL-175599
Inventory/Storage List of Locations *(Clause 63.1)*	Named Locations: As Per Attached List of Approved Locations Unnamed Location: NOT COVERED	
Inventory/Storage Valuation *(Clause 63.4)*	63.4.1 Raw Materials, Work in Process, and Finished Goods - valued at replacement cost. Replacement cost to be defined as the cost of labor, materials, and other necessary expenses directly related to the damaged product, less any unincurred expenses and excluding overhead, research, and development. 63.4.2 All Other Goods and/or Merchandise - valued at invoice value, or if no invoice value, at replacement cost. Replacement cost to be defined as the cost to replace with like kind, quality, and condition. 63.4.3 Used Goods and/or Used Merchandise and/or Used Property and/or Furniture Fixtures and Equipment (FFE): Valued at replacement cost for goods and/or merchandise and/or property at the time of loss at the originally intended destination except that in respect to items for which replacement with identical property is impossible or impractical, the replacement cost shall be the cost of items similar to the damaged property and intended to perform the same function, and which may include improvements and technological advances.	
Inventory/Storage Deductibles *(Clause 63.5)*	Any one occurrence 10,000.00	
Inventory/Storage Extra Expense *(Clause 63.7)*	Excluded	
Inventory/Storage FFE *(Clause 63.8)*	Excluded	
Inventory/Storage Additional Coverage Extension(s)		
Inventory/Storage Processing *(Clause 63.9.1)*	Excluded as written in the policy and simultaneously replaced by the Processing – Exclusion as endorsed hereon	

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INVENTORY/STORAGE DETAILS PAGE

<table>
<tr><td rowspan="15">Inventory/Storage Natural Perils
(Clause 63.9.2)</td><td colspan="3">COVERAGES</td></tr>
<tr><td>Natural Perils</td><td>Schedule Named Locations</td><td>Any one Unnamed Location</td></tr>
<tr><td>Flood</td><td>Included</td><td>Excluded</td></tr>
<tr><td>Windstorm</td><td>Included</td><td>Excluded</td></tr>
<tr><td>Earthquake</td><td>Included</td><td>Excluded</td></tr>
<tr><td colspan="3">DEDUCTIBLES</td></tr>
<tr><td>Natural Perils</td><td>Schedule Named Locations</td><td>Any one Unnamed Location</td></tr>
<tr><td>Flood</td><td>25,000.00</td><td>Excluded</td></tr>
<tr><td>Windstorm</td><td>50,000.00</td><td>Excluded</td></tr>
<tr><td>Earthquake</td><td>25,000.00</td><td>Excluded</td></tr>
<tr><td colspan="3">AGGREGATE LIMITS</td></tr>
<tr><td colspan="2">Earthquake - Named Locations</td><td>500,000.00</td></tr>
<tr><td colspan="2">Flood - Named Locations</td><td>500,000.00</td></tr>
<tr><td colspan="2">Windstorm - Named Locations</td><td>500,000.00</td></tr>
<tr><td colspan="3">Each limit reflected above is for all occurrences for all locations combined in any one policy period. Any sub-limits appearing above do not increase the Limit(s) of Insurance provided at each location.</td></tr>
<tr><td>Inventory/Storage Additional Exclusions</td><td colspan="3">Named Locations:
California Earthquake

Unnamed Location: Not Applicable</td></tr>
<tr><td>Inventory/Storage Spoilage
(Clause 63.9.3)</td><td colspan="3">Included
48 Hours Time Deductible</td></tr>
</table>

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INVENTORY/STORAGE DETAILS PAGE

Inventory/Storage Special Conditions	It is further understood and agreed that the following is added to Clause 63.9.3 Spoilage, Deterioration, and Decay: (iii) Improper temperature setting when improperly set by a third party. **Outdoor Storage Clause** It is understood and agreed this policy does not provide coverage for goods stored outside and/or in the open, unless specifically agreed to by The Assurer and is expressly endorsed on this policy. For the purpose of this clause, goods stored outside and/or in the open, whether at named or unnamed locations, include, but are not limited to, the following: • trailers/containers within the parking lot and/or adjacent yard; • temporary structures (i.e. tents, canopies, etc.); • fenced areas outdoors; and, • trailers, located at/in loading dock, or adjacent thereto, being used as storage, temporary or otherwise. This clause does not apply to goods in the due course of transit and/or being actively loaded or unloaded. **Retail Exclusion** Unless specifically agreed by This Company in writing prior to attachment of risk, it is understood and agreed that loss, damage or expense to goods insured is specifically excluded whilst at shop or store or showroom locations whose purpose is to sell goods at retail to consumers.
Inventory/Storage Additional Warranties	It is warranted by the Assured and a condition precedent of this insurance that temperature sensitive property is monitored by a UL listed central station temperature alarm programmed to activate in the event of temperature deviation that is monitored, and alerts Assured of any temperature deviation 24/7.
Currency	All references to currency on this policy reflect US Dollars

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INDAPTUS THERAPEUTICS, INC.
INVENTORY/STORAGE
LIST OF LOCATIONS APPROVED BY THE UNDERWRITER
AS OF JULY 26, 2025

Location Number	Address	Limit	Natural Perils Deductible(s) per Clause 63.9.2
1	Sharp Clinical 2400 Baglyos Cir Bethlehem, PA 18020 United States	500,000.00	F: 25,000.00 W: 50,000.00 Q: 25,000.00

Natural Peril Key:

F: Flood
W: Windstorm
Q: Earthquake
EQSL: Earthquake Sprinkler Leakage

All other terms and conditions of this Policy remain unchanged.

Signed at North Kingstown, Rhode Island on the 8th of July, 2025

Signature J. Michael Falvey
Authorized Representative

FALVEY INSURANCE GROUP

FALVEY
CARGO UNDERWRITING

Endorsement No: 1

Effective date of this Endorsement: July 26, 2025

This Endorsement is attached to and forms a part of Policy Number: FAL-175599

"Insured" or "Assured" Referred to in this Endorsement is Indaptus Therapeutics, Inc.

"Insurer" or "Assurer" Referred to in this Endorsement is as per Declarations Page or as endorsed thereon

PROCESSING - EXCLUSION

This endorsement modifies insurance provided under the following: F00691 042018 ed

PROCESSING - EXCLUSION:

It is understood and agreed that this Processing Exclusion Clause is hereto attached and shall be paramount and shall not be modified or superseded by any other provision included herein or stamped, endorsed or subsequently endorsed hereon:

This insurance excludes physical loss or damage to the goods insured whilst the goods insured are under a manufacturing, assembly, modification or testing process or otherwise being worked upon, howsoever caused.

All other terms and conditions of this Policy remain unchanged.

Signed at North Kingstown, Rhode Island on the 8th of July, 2025.

Signature J. Michael Falvey
Authorized Representative

FALVEY INSURANCE GROUP

FALVEY
CARGO UNDERWRITING

Endorsement No: 2

Effective date of this Endorsement: July 26, 2025

This Endorsement is attached to and forms a part of Policy Number: FAL-175599

"Insured" or "Assured" Referred to in this Endorsement is Indaptus Therapeutics, Inc.

"Insurer" or "Assurer" Referred to in this Endorsement is as per Declarations Page or as endorsed thereon

WINDSTORM DEFINITION AMENDED

This endorsement modifies insurance provided under the following: F00691 042018 ed

WINDSTORM DEFINITION AMENDED:

It is understood and agreed that the **Catastrophic Peril Definition for Windstorm** found in **Policy Form F00691** is deleted and simultaneously replaced with the below:

Windstorm is defined as a storm or weather disturbance which is identified by name by any meteorological authority, such as the National Oceanic and Atmospheric Administration's (NOAA) National Hurricane Center. For purposes of this definition, Windstorm shall include direct physical loss, damage or destruction caused by:

i. direct action of wind including ensuing storm surge;
ii. any material, object or debris that is carried, propelled or in any manner moved by such windstorm;
iii. any tornado(s) that is the result of actions or effects of such windstorm OR arising by itself by any weather disturbance or storm, whether named or not;
iv. hail that is the result of actions or effects of such windstorm;
v. lightning that is the result of actions or effects of such windstorm;
vi. rain or water (not constituting a Flood), whether the rain or water is driven by wind or not, that enters a building or structure insured under this policy through an opening(s) created by the direct action of such windstorm.

However ensuing physical loss, damage or destruction not contained in paragraphs (i) to (vi) above and not otherwise excluded herein shall not be considered Windstorm within the terms and conditions of this endorsement.

All other terms and conditions of this Policy remain unchanged.

Signed at North Kingstown, Rhode Island on the 8th of July, 2025.

Signature J. Michael Falvey
Authorized Representative

FALVEY INSURANCE GROUP

FALVEY
CARGO UNDERWRITING

Endorsement No: 3

Effective date of this Endorsement: July 26, 2025

This Endorsement is attached to and forms a part of Policy Number: FAL-175599

"Insured" or "Assured" Referred to in this Endorsement is Indaptus Therapeutics, Inc.

"Insurer" or "Assurer" Referred to in this Endorsement is as per Declarations Page or as endorsed thereon

RESEARCH ANIMALS AND PAIR-SETS CLAUSE

This endorsement modifies insurance provided under the following: F00691 042018 ed

RESEARCH ANIMALS AND PAIR-SETS CLAUSE:

It is understood and agreed that **Clause No. 67, Pair and Sets,** is deleted in its entirety.

It is further understood and agreed that the, **RESEARCH ANIMALS,** is hereto attached to this marine cargo contract as follows:

RESEARCH ANIMALS

1 Notwithstanding the underlying terms and conditions of this marine cargo policy, Insurers will pay for all risks of direct physical loss or damage to research animals (meaning animals used in the Insured's research and development operations) caused by or resulting from a peril not otherwise excluded, not to exceed the applicable Limit of Insurance as **"Per Declarations Page"** and/or **"As per Inventory Storage Schedule"** (if applicable) or any subsequent amendments thereto.

2. This insurance does not apply to sickness, disease or death caused by or resulting from:

2.1 experimentation;

2.2 natural causes;

2.3 intentional or humane destruction.

3. Research animals are valued based on the cost to purchase a replacement animal of the same kind and quality. The value does not include:

3.1 the cost of identifying individual animals;

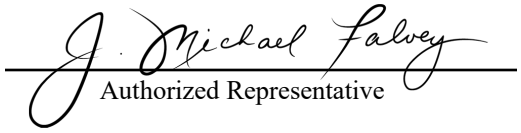
3.2 any increase in an animal's value as a result of your research and development operations; or

3.3 the cost incurred to recreate any research and development project or function for which such animals were or would have been used.

4. Each loss shall be adjusted separately and from the amount of the loss there shall first be deducted the sum of "**As Per Declarations Page**" and/or **"As per Inventory Storage Schedule"** (if applicable) or any subsequent amendments thereto any one loss or occurrence.

All other terms and conditions of this Policy remain unchanged.

Signed at North Kingstown, Rhode Island on the 8th of July, 2025.

Signature  Authorized Representative

FALVEY INSURANCE GROUP

FALVEY
CARGO UNDERWRITING

Endorsement No: 4

Effective date of this Endorsement: July 26, 2025

This Endorsement is attached to and forms a part of Policy Number: FAL-175599

"Insured" or "Assured" Referred to in this Endorsement is Indaptus Therapeutics, Inc.

"Insurer" or "Assurer" Referred to in this Endorsement is as per Declarations Page or as endorsed thereon

INSURING CONDITIONS ENDORSEMENT

This endorsement modifies insurance provided under the following: F00691 042018 ed

It is understood and agreed that the following is modified:

6.1 INSURING CONDITIONS:

6.1 Unless specifically provided for elsewhere in this policy and/or its endorsements, all goods and/or merchandise insured under this policy are insured:

Against All Risks of physical loss or damage, including spoilage and deterioration, from external cause irrespective of percentage. It is specifically understood and agreed that this insurance includes coverage for spoilage and deterioration caused by delay, provided that the delay in transit exceeds 48 hours and that such delay is beyond the direct control of the Assured (but excluding those risks excepted by "F.C. & S. and S.R. & C.C." Warranties). Excluding however, delay due to the late pickup or delivery to carriers by the Assured which results in a missed flight; failure to clear customs or carriage due to inadequate or improper documentation by the Assured; inadequate packing or improper preparation for shipment or from insecure stowage when stowed by the Assured.

All other terms and conditions of this Policy remain unchanged.

Signed at North Kingstown, Rhode Island on the 8th of July, 2025.

Signature J. Michael Falvey
Authorized Representative

FALVEY INSURANCE GROUP

FALVEY
CARGO UNDERWRITING

Endorsement No: 5

Effective date of this Endorsement: July 26, 2025

This Endorsement is attached to and forms a part of Policy Number: FAL-175599

"Insured" or "Assured" Referred to in this Endorsement is Indaptus Therapeutics, Inc.

"Insurer" or "Assurer" Referred to in this Endorsement is as per Declarations Page or as endorsed thereon

DEDUCTIBLE ENDORSEMENT

This endorsement modifies insurance provided under the following: F00691 042018 ed

It is understood and agreed that **Clause No. 7, DEDUCTIBLE,** is deleted and simultaneously replaced with the following:

7 DEDUCTIBLE:

7.1 Each claim for loss or damage which results from a single loss occurrence shall be adjusted separately and from the amount of each such adjusted claim, a deductible of **10,000.00** shall apply, unless specifically noted below:

Type	Amount
Any one loss or occurrence caused by or resulting from Spoilage, Deterioration and/or Decay	25,000.00

These deductibles shall apply to all shipments by whatever conveyance used; however, notwithstanding the foregoing, deductible(s) shall not apply to losses for General Average or Salvage Charges and Survey Fees.

7.2 Each claim for loss or damage (regardless of number) arising from a covered event or arising during a single voyage or conveyance shall be adjusted as a single claim. An "event" shall be defined as a single accident or occurrence or a series or sequence of accidents or occurrences arising from the same cause.

7.3 In the event of a loss involving more than one coverage or section of this policy, including endorsements, the loss will be adjusted against each applicable coverage or policy section including endorsements by interest insured. However, in no event will **The Insured's** retained loss arising from any one event exceed the largest single applicable deductible herein.

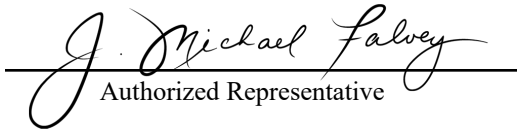
7.4 In the event of a loss involving a locally arranged policy or policies and this policy, the deductibles applicable under all such policies shall be added together. However, in no event will **The Insured's** combined retained loss from any one event exceed the largest single applicable deductible herein. **This Insurer** agrees that it will reimburse or credit to **The Insured** any amount that exceeds the deductible applicable herein.

7.5 The deductible shall not be applied so as to reduce **This Insurer's** obligation to pay the full amount of any limit(s) of liability set forth in this policy.

7.6 Notwithstanding the above, it is understood and agreed that the deductibles stated herein shall apply to losses resulting from theft or non-delivery, and from any loss determined to be a "constructive total loss" as determined under the Control of Damaged Merchandise Clause.

All other terms and conditions of this Policy remain unchanged.

Signed at North Kingstown, Rhode Island on the 8th of July, 2025.

Signature  Authorized Representative

FALVEY INSURANCE GROUP

FALVEY CARGO UNDERWRITING

Endorsement No: 6

Effective date of this Endorsement: July 26, 2025

This Endorsement is attached to and forms a part of Policy Number: FAL-175599

"Insured" or "Assured" Referred to in this Endorsement is Indaptus Therapeutics, Inc.

"Insurer" or "Assurer" Referred to in this Endorsement is as per Declarations Page or as endorsed thereon

MARINE CYBER ENDORSEMENT LMA5403

This endorsement modifies insurance provided under the following: F00691 042018 ed

It is understood and agreed that the following is attached:

1 Subject only to paragraph 3 below, in no case shall this insurance cover loss, damage, liability or expense directly or indirectly caused by or contributed to by or arising from the use or operation, as a means for inflicting harm, of any computer, computer system, computer software programme, malicious code, computer virus, computer process or any other electronic system.

2 Subject to the conditions, limitations and exclusions of the policy to which this clause attaches, the indemnity otherwise recoverable hereunder shall not be prejudiced by the use or operation of any computer, computer system, computer software programme, computer process or any other electronic system, if such use or operation is not as a means for inflicting harm.

3 Where this clause is endorsed on policies covering risks of war, civil war, revolution, rebellion, insurrection, or civil strife arising therefrom, or any hostile act by or against a belligerent power, or terrorism or any person acting from a political motive, paragraph 1 shall not operate to exclude losses (which would otherwise be covered) arising from the use of any computer, computer system or computer software programme or any other electronic system in the launch and/or guidance system and/or firing mechanism of any weapon or missile.

LMA5403

11 November 2019

All other terms and conditions of this Policy remain unchanged.

Signed at North Kingstown, Rhode Island on the 8th of July, 2025.

Signature J. Michael Falvey
Authorized Representative

FALVEY INSURANCE GROUP

FALVEY
CARGO UNDERWRITING

Endorsement No: 7

Effective date of this Endorsement: July 26, 2025

This Endorsement is attached to and forms a part of Policy Number: FAL-175599

"Insured" or "Assured" Referred to in this Endorsement is Indaptus Therapeutics, Inc.

"Insurer" or "Assurer" Referred to in this Endorsement is as per Declarations Page or as endorsed thereon

COMMUNICABLE DISEASE EXCLUSION (CARGO)

This endorsement modifies insurance provided under the following: F00691 042018 ed

It is understood and agreed that with this JC2020-011 Communicable Disease Exclusion (Cargo) is hereto attached, this exclusion being paramount to coverage herein:

1. Notwithstanding any provision to the contrary within this insurance, this insurance does not insure any loss, damage, liability, claim, cost or expense of whatsoever nature caused by, contributed to by, resulting from, arising out of, or in connection with a Communicable Disease or the fear or threat (whether actual or perceived) of a Communicable Disease regardless of any other cause or event contributing concurrently or in any other sequence thereto.

2. As used herein, a Communicable Disease means any disease which can be transmitted by means of any substance or agent from any organism to another organism where:

    2.1. the substance or agent includes, but is not limited to, a virus, bacterium, parasite or other organism or any variation thereof, whether deemed living or not, and

    2.2. the method of transmission, whether direct or indirect, includes but is not limited to, airborne transmission, bodily fluid transmission, transmission from or to any surface or object, solid, liquid or gas or between organisms, and

    2.3. the disease, substance or agent can cause or threaten bodily injury, illness, damage to human health, human welfare or property.

JC2020-011
17 April 2020

All other terms and conditions of this Policy remain unchanged.

Signed at North Kingstown, Rhode Island on the 8th of July, 2025.

Signature J. Michael Falvey
Authorized Representative

FALVEY INSURANCE GROUP

FALVEY
CARGO UNDERWRITING

Endorsement No: 8

Effective date of this Endorsement: July 26, 2025

This Endorsement is attached to and forms a part of Policy Number: FAL-175599

"Insured" or "Assured" Referred to in this Endorsement is Indaptus Therapeutics, Inc.

"Insurer" or "Assurer" Referred to in this Endorsement is as per Declarations Page or as endorsed thereon

S.R. & C.C. ENDORSEMENT (FORM NO. 12A)

This endorsement modifies insurance provided under the following: F00691 042018 ed

It is understood and agreed that in consideration of a flat fully earned premium as agreed, **Clause No. 59, S.R. & C.C. ENDORSEMENT (Form No. 12),** is deleted and simultaneously replaced with the following:

59. S.R. & C.C. ENDORSEMENT (Form No. 12A)

THIS INSURANCE ALSO COVERS:

(1) Physical loss of or damage to property insured directly caused by strikers, locked-out workmen, or persons taking part in labor disturbances or riots or civil commotions;

(2) Physical loss of or damage to the property insured directly caused by vandalism, sabotage or malicious acts; and,

(3) Physical loss of or damage to the property insured directly caused by the act or acts of one or more persons, whether or not agents of a sovereign power, carried out for political, terroristic or ideological purposes and whether any loss, damage or expense resulting therefrom is accidental or intentional; PROVIDED that any claim to be recoverable under this subsection (3) be not excluded by the Free of Capture & Seizure Warranty, Extended Radioactive Contamination Exclusion Clause (Extended RACE Clause) or Chemical, Biological, Bio-Chemical and Electromagnetic Exclusion Clause (CBE Clause) in the Policy to which this endorsement is attached. Notwithstanding the foregoing, coverage under this subsection (3) is conditional upon the property insured being in the ordinary course of transit and, in any event,shall terminate:

   (a) As per the Warehouse to Warehouse Clause, Marine Extension Clause, 60 Day South American Clause and any other clauses relating to duration of transit contained in or endorsed onto the Policy; or,

   (b) on delivery to the consignee's or other final warehouse or place of storage at the destination named herein; or,

   (c) on delivery to any warehouse or place of storage whether prior to or at the destination named herein, which the Assured elects to use either for storage other than in the ordinary course of transit or for allocation or distribution; or,

   (d) in respect of marine transits, on the expiry of 60 days after completion of discharge overside of the property insured from the vessel at the port of discharge; or,

   (e) in respect of air transits, on the expiry of 30 days after unloading the property insured from the aircraft at the place of discharge;

whichever shall first occur.

Notwithstanding the foregoing, nothing in this clause excludes coverage for insured losses, which are otherwise covered by this insurance, caused by certified acts of terrorism, as defined in the Terrorism Risk Insurance Act (P.L. #107-297), or any subsequent amendments or endorsements to the Act.

While the property insured is at risk under the terms and conditions of this insurance within the United States of America, the Commonwealth of Puerto Rico, the U.S. Virgin Islands and Canada, this insurance is extended to cover physical loss of or damage to the property insured directly caused by acts committed by an agent of any government, party or faction engaged in war, hostilities or other warlike operations, provided such agent is acting secretly and not in connection with any operation of military or naval armed forces in the country where the described property is situated.

Nothing in this endorsement shall be construed to cover any loss, damage or expense directly or indirectly arising from, contributed to or caused by any of the following, whether due to a peril insured against or otherwise:

(a) change in temperature or humidity;

(b) the absence, shortage, or withholding of power, fuel, or labor of any description whatsoever during any strike, lockout, labor disturbance, riot or civil commotion;

(c) loss of market or loss, damage or deterioration arising from delay;

(d) hostilities, warlike operations, civil war, revolution, rebellion or insurrection, or civil strife arising therefrom, except to the limited extent that the acts of certain agents acting secretly have been expressly covered above; or,

(e) nuclear reaction, radiation or radioactive contamination, as per Extended RACE Clause;

(f) chemical, biological, bio-chemical or electromagnetic weapon, device, agent or material, as per CBE Clause.

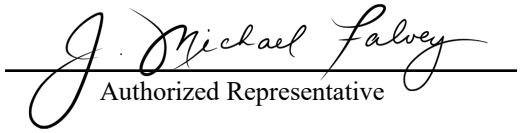
The Assured agrees to report all shipments attaching under this cover and to pay premiums therefore at the rates established by the Assurer from time to time.

This endorsement may be canceled by either party upon forty-eight hours written, telegraphic, telefaxed, or electronic notice to the other party, but such cancellation shall not affect any risks which have already attached hereunder.

All other terms and conditions of this Policy remain unchanged.

All other terms and conditions of this Policy remain unchanged.

Signed at North Kingstown, Rhode Island on the 8th of July, 2025.

Signature  Authorized Representative

FALVEY INSURANCE GROUP

FALVEY
CARGO UNDERWRITING

Endorsement No: 9

Effective date of this Endorsement: July 26, 2025

This Endorsement is attached to and forms a part of Policy Number: FAL-175599

"Insured" or "Assured" Referred to in this Endorsement is Indaptus Therapeutics, Inc.

"Insurer" or "Assurer" Referred to in this Endorsement is as per Declarations Page or as endorsed thereon

GOVERNING LAW AND JURISDICTION

This endorsement modifies insurance provided under the following: F00691 042018 ed

It is understood and agreed that the following is attached:

TERMS DEFINED

It is understood and agreed that references in this policy to "Underwriter" or "Underwriters", if any, in the clauses attaching to and forming part of this cover, shall be deemed to read, "Falvey Cargo Underwriting, Ltd.", on behalf of the Insurer(s) and that reference to "Insurer" or "Insurers" or "Security", if any, in the clauses attaching to and forming part of this cover, shall be deemed to read, "Lloyd's America, Inc.", "Sentry Insurance Company", "Accredited Specialty Insurance Company" and "Great American Insurance Company" As Per Declarations Page.

To where it should apply, the following shall supersede any wording in the policy regarding Service of Suits and/or Service of Process and if absent, the following shall be attached where applicable:

GOVERNING LAW AND JURISDICTION
(SERVICE OF SUIT/SERVICE OF PROCESS)

This is a Policy of Marine Insurance governed by United States federal maritime law as recognized in the United States Court of Appeals for the Second Circuit, and to the extent the federal maritime law does not provide an applicable rule of law, then by the law of the State of New York, independent of any rules as to choice of law.

It is agreed that in the event of any dispute arising with respect to payment of any amount claimed to be due hereunder, The Insurers and the Insured hereon agree to submit to the jurisdiction of the United States District Court for the Southern District of New York, or, in the event the United States District Court for the Southern District of New York lacks federal subject matter jurisdiction, to the jurisdiction of the Supreme Court of the State and the County of New York, and will comply with all requirements necessary to establish jurisdiction with such Court and all matters arising hereunder shall be determined in accordance with the law and practice of such Court.

If it is determined by the United States District Court for the Southern District of New York, or in the alternative the Supreme Court of the State and the County of New York, that this forum selection is not enforceable, These Insurers will, at the request of the Insured, submit to the jurisdiction of a court of competent jurisdiction within the United States of America, in which event The Insurers shall have the right to remove the action to a United States Federal District Court, or to seek remand therefrom, or to seek a transfer to any other court of competent jurisdiction, as permitted by the laws of the United States of America or state, and provided further that nothing in this provision constitutes a waiver of The Insurers' rights to commence an action in any court of competent jurisdiction in the United States of America.

Subject to the Underwriters' rights set forth above, it is further agreed that the Assured may serve process upon:

a) With respect to Lloyd's security (wholly or in part):

Lloyd's America, Inc
Attention: Legal Department
280 Park Avenue, East Tower, 25th Floor
New York, NY 10017

b) With respect to the Sentry companies, in states which so require, the person or office holder named below is authorized and directed to accept service of process on behalf of the Sentry companies:

[See Addendum 1, Column “Insurance Office”]

And having accepted service of process on behalf of the Sentry companies, the office holder is authorized to mail the process or a true copy, where applicable, to:

[See Addendum 1, Column “Registered Agent's Office”]

And in all other states the Sentry companies agree to accept service at:

Sentry Insurance Company
Attn - Point Excess & Surplus Ins. Co.
1800 North Point Drive
Stevens Point, WI 54481

With a required copy sent to:

CT Corporation System
301 South Bedford Street, Suite 1
Madison, WI 53703

c) With respect to Accredited Specialty Insurance Company (wholly or in part):

Accredited Specialty Insurance Company
Attention: Legal Department
4798 New Broad Street, Suite 200
Orlando, FL 32814

d) With respect to Great American Insurance Company (wholly or in part):

Great American Insurance Company
28 Liberty, Suite 3610
New York, NY 10005
Attention: Legal Department

With required copy to:

General Counsel
301 East Fourth Street
Cincinnati, OH 45202

e) The above-named are authorized and directed to accept service of process on behalf of Underwriters in any such suit and/or upon the request of the Insured to give a written undertaking to the Insured that they will enter a general appearance upon the Underwriters' behalf in the event such a suit shall be instituted.

f) The right of the Insured to bring suit as provided herein shall be limited to a suit brought in its own name and for its own account. For the purpose of suit as herein provided the word insured includes any mortgagee under a ship mortgage which is specifically named as a loss payee in this insurance and any person succeeding to the rights of any such mortgagee.

g) Pursuant to any statute of any state, territory or district of the United States of America which makes provision therefor, Underwriters hereby designate the Superintendent, Commissioner or Director of Insurance or other officer specified for that purpose in the statute, or his successor or successors in office (the Officer), as their true and lawful attorney upon whom may be served any lawful process in any action, suit or proceeding instituted by or on behalf of the Assured or any beneficiary hereunder arising out of this contract of insurance, and hereby designate the above-named as the person to whom the Officer is authorized to mail such process or a true copy thereof. In any suit instituted against any one of the above upon this contract, the Underwriters will abide by the final decision of the Court or of any Appellate Court in the event of an appeal.

Addendum 1 - State of Domicile Guidance

State	*Insurance Office*	*Registered Agent*
Alabama	Commissioner of Insurance 201 Monroe Street Suite 502 Montgomery, AL 36104	C T Corporation System 2 North Jackson Street, Suite 605 Montgomery, AL 36104 CT-Statecommunications@wolterskluwer.com
Alaska	Director of Insurance 9th Floor, State Office Bldg. 333 Willoughby Avenue Juneau, AK 99811-0805	C T Corporation System 8585 Old Dairy Road, Suite 208 Juneau, AK 99801 CT-Statecommunications@wolterskluwer.com
Arizona	Director of Insurance 2910 N. 44th Street Suite 210 Phoenix, AZ 85018	C T Corporation System 3800 North Central Avenue, Suite 460 Phoenix, AZ 85012 Telephone: 515-281-5705 CT-Statecommunications@wolterskluwer.com
Arkansas	Commissioner of Insurance 1200 West Third Street Little Rock, AR 72201-1904	C T Corporation System 124 West Capitol Avenue Suite 1900 Little Rock, AR 72201 CT-Statecommunications@wolterskluwer.com
California	Commissioner of Insurance 45 Fremont Street 23rd Floor San Francisco, CA 94105	C T Corporation System 330 N Brand Blvd. Suite 700 Glendale, CA 91203
Colorado	Commissioner of Insurance 1560 Broadway, Suite 850 Denver, CO 80202	C T Corporation System 7700 East Arapahoe Road, Suite 220 Centennial, CO 80112-1268 CT-Statecommunications@wolterskluwer.com
Connecticut	Commissioner of Insurance 153 Market Street, 7th Floor Hartford, CT 06103	C T Corporation System 67 Burnside Avenue East Hartford, CT 06108-3408 Telephone: 860-519-0370 Fax: 860-906-1427 CT-Statecommunications@wolterskluwer.com
Delaware	Commissioner of Insurance Rodney Building 841 Silver Lake Boulevard Dover, DE 19904	The Corporation Trust Company Corporation Trust Center 1209 Orange Street Wilmington, DE 19801 CT-Statecommunications@wolterskluwer.com
District of Columbia	Corporation Service Company 1090 Vermont Avenue N.W. Washington, DC 20005	C T Corporation System 1015 15th Street NW, Suite 1000 Washington, D.C. 20005 CT-Statecommunications@wolterskluwer.com

State	*Insurance Office*	*Registered Agent*
Florida	Chief Financial Officer Department of Financial Services 200 East Gaines Street Tallahassee, FL 32399	Donna Moch C T Corporation System 1200 South Pine Island Road Plantation, FL 33324 Telephone: 954-473-5503 Fax: 954-476-0158 Email: ctstatecommunications@wolterskluwer.com Peter F. Souza (assigned thru CT Corp.) 1200 South Pine Island Road Plantation, FL 33324 CT-Statecommunications@wolterskluwer.com
Georgia	Commissioner of Insurance Two Martin Luther King Jr. Drive West Tower, Suite 704 Atlanta, GA 30334	Ms. Linda Banks 289 S. Culver Street Lawrenceville, GA 30046-4805
Hawaii	Commissioner of Insurance 335 Merchant Street, Room 213 Honolulu, HI 96813	C T Corporation System 900 Fort Street Mall, Suite 1680 Honolulu, HI 96813 Telephone: 808-524-4488 Fax: 808-524-4499 CT-Statecommunications@wolterskluwer.com
Idaho	Director of Insurance 700 West State Street P. O. Box 83720 Boise, ID 83720-0043	C T Corporation System 1555 W. Shoreline Drive, Suite 100 Boise, ID 83705 CT-Statecommunications@wolterskluwer.com
Illinois	Director of Insurance 122 S. Michigan Avenue 19th Floor Chicago, IL 60603	Sentry Insurance Company Attn- Office of General Counsel 1800 North Point Drive Stevens Point, WI 54482
Indiana	C T Corporation System 334 North Senate Avenue Indianapolis, IN 46204-1708	C T Corporation System 334 North Senate Avenue Indianapolis, IN 46204-1708 Telephone: 501-244-9034 Fax: 501-376-8433 CT-Statecommunications@wolterskluwer.com
Iowa	Commissioner of Insurance 601 Locust Street, 4th Floor Des Moines, IA 50319	C T Corporation System 400 East Court Avenue Des Moines, IA 50309 Telephone: 515-281-5705 CT-Statecommunications@wolterskluwer.com

State	*Insurance Office*	*Registered Agent*
Kansas	Commissioner of Insurance 420 S.W. Ninth Street Topeka, KS 66612-1678	C T Corporation System 112 S.W. 7th Street, Suite 3C Topeka, KS 66603 CT-Statecommunications@wolterskluwer.com
Kentucky	Secretary of State 700 Capitol Avenue Room 152 Frankfort, KY 40601	C T Corporation System 306 W. Main Street, Suite 512 Frankfort, KY 40601 CT-Statecommunications@wolterskluwer.com
Louisiana	Secretary of State 8585 Archives Avenue P.O. Box 94125 Baton Rouge, LA 70809	C T Corporation System 3867 Plaza Tower Drive Baton Rouge, LA 70816-4378 CT-Statecommunications@wolterskluwer.com
Maine	CT Corporation System 3 Chrome Avenue Agusta, ME 04330	C T Corporation System 3 Chase Avenue Augusta, ME 04330 CT-Statecommunications@wolterskluwer.com
Maryland	Commissioner of Insurance 200 St. Paul Place, Suite 2700 Baltimore, MD 21202	The Corporation Trust Incorporated 2405 York Road, Suite 201 Lutherville-Timonium, MD 21093-2264 Telephone: 443-895-4105 Fax: 443-895-4108 CT-Statecommunications@wolterskluwer.com
Massachusetts	Commissioner of Insurance 1000 Washington Street Suite 810 Boston, MA 02118-6200	C T Corporation System 155 Federal Street, Suite 700 Boston, MA 02110 CT-Statecommunications@wolterskluwer.com
Michigan	C/o Resident Agent Director of Insurance Department of Insurance and Financial Services 530 W. Allegan Street, 7th Floor Lansing, MI 48933	The Corporation Company 40600 Ann Arbor Road E., Suite 201 Plymouth, MI 48170-4675 CT-Statecommunications@wolterskluwer.com
Minnesota	Commissioner of Commerce 85 Seventh Place East Suite 500 St. Paul, MN 55101	C T Corporation System, Inc. 1010 Dale Street North St. Paul, MN 55117-5603 CT-Statecommunications@wolterskluwer.com

State	*Insurance Office*	*Registered Agent*
Mississippi	Commissioner of Insurance 1001 Woolfolk State Office Building 501 N. West Street Jackson, MS 39201	C T Corporation System of Mississippi 645 Lakeland East Drive, Suite 101 Flowood, MS 39232 CT-Statecommunications@wolterskluwer.com
Missouri	Director of Insurance 301 W. High Street, Room 530 P. O. Box 690 Jefferson City, MO 65102	C T Corporation System 120 South Central Avenue Clayton, MO 63105 CT-Statecommunications@wolterskluwer.com
Montana	Commissioner of Insurance 840 Helena Avenue Helena, MT 59601	C T Corporation System 3011 American Way Missoula, MT 59808 Telephone: 406-248-7646 Fax: 406-248-5485 CT-Statecommunications@wolterskluwer.com
Nebraska	Director of Insurance Terminal Building Suite 400 941 "O" Street Lincoln, NE 68508	C T Corporation System 5601 South 59th Street Lincoln, NE 68516 CT-Statecommunications@wolterskluwer.com
Nevada	Commissioner of Insurance 1818 College Parkway Suite 103 Carson City, NV 89706	The Corporation Trust Company of Nevada 701 S. Carson St., Suite 200 Carson City, NV 89701 Telephone: 775-888-4060 CT-Statecommunications@wolterskluwer.com
New Hampshire	Commissioner of Insurance 21 South Fruit Street, Suite 14 Concord, NH 03301	C T Corporation System 2 ½ Beacon Street Concord, NH 03301-4447 Telephone: 603-224-2341 Fax: 603-228-0787 CT-Statecommunications@wolterskluwer.com
New Jersey	Commissioner of Insurance 20 W. State Street P.O. Box 325 Trenton, NJ 08625	The Corporation Trust Company 820 Bear Tavern Road West Trenton, NJ 08628 CT-Statecommunications@wolterskluwer.com
New Mexico	Superintendent of Insurance 1120 Paseo de Peralta, 4th Floor Santa Fe, NM 87504	C T Corporation System 206 South Coronado Avenue Espanola, NM 87532-2792 CT-Statecommunications@wolterskluwer.com

State	*Insurance Office*	*Registered Agent*
New York	Superintendent of Insurance One State Street New York, NY 10004	Mara Velasco c/o C T Corporation System 28 Liberty St. New York, NY 10005 Mara.Velasco@WoltersKluwer.com
North Carolina	Commissioner of Insurance 1201 Mail Service Center 430 N. Salisbury Street Raleigh, NC 27603	Point Excess & Surplus Insurance Company c/o North Carolina Department of Insurance Attn: Mike Causey, Commissioner, as Registered Agent 1201 Mail Service Center Raleigh, NC 27699-1201
North Dakota	Commissioner of Insurance 600 E. Blvd. Ave. State Capitol, 5th Floor Bismarck, ND 58505-0320	C T Corporation System 120 W Sweet Avenue Bismarck, ND 58504-5566 Telephone: 701-222-2890 Fax: 701-223-7865 CT-Statecommunications@wolterskluwer.com
Ohio	Ohio Department of Insurance 50 West Town Street Third Floor - Suite 300 Columbus, OH 43215	C T Corporation System 4400 Easton Commons Way Suite 125 Columbus, OH 43219-6223 Telephone: 614-621-1919 CT-Statecommunications@wolterskluwer.com
Oklahoma	Commissioner of Insurance 3625 NW 56th, Suite 100 Oklahoma City, OK 73112-4511	The Corporation Company 1833 South Morgan Road Oklahoma City, OK 73128 Telephone: 405-324-8180 Email: CLS-Reps-Oklahoma@wolterskluwer.com
Oregon	C T Corporation System 780 Commercial Street SE, Suite 100 Salem, OR 97301-3465	C T Corporation System 780 Commercial Street SE, Suite 100 Salem, OR 97301-3465 Telephone: 503-566-6883 Fax: 503-566-9181 CT-Statecommunications@wolterskluwer.com
Pennsylvania	CT Corporation System 600 North 2d Street, Suite 401 Harrisburg, PA 17101	Point Excess & Surplus Insurance Company Attn: Office of General Counsel 1800 North Point Drive Stevens Point, WI 54481
Rhode Island	Director of Insurance 1511 Pontiac Avenue Cranston, RI 02920	C T Corporation System 450 Veterans Memorial Parkway Suite 7A East Providence, RI 02914 CT-Statecommunications@wolterskluwer.com

State	*Insurance Office*	*Registered Agent*
South Carolina	Director of Insurance 1201 Main Street, Ste. 1000 P. O. Box 100105 Columbia, SC 29201	C T Corporation System 2 Office Park Court, Suite 103 Columbia, SC 29223 Telephone: 312-288-3542 Fax: 803-699-6178 Email: SOPInquiries@wolterskluwer.com CT-Statecommunications@wolterskluwer.com
South Dakota	Commissioner of Insurance 445 East Capitol Avenue Pierre, SD 57501	C T Corporation System 319 South Coteau Street Pierre, SD 57501 CT-Statecommunications@wolterskluwer.com
Tennessee	Commissioner of Insurance 500 James Robertson Parkway Davy Crockett Tower Nashville, TN 37243-0565	C T Corporation System 300 Montvue Road Knoxville, TN 37919-5546 CT-Statecommunications@wolterskluwer.com
Texas	Commissioner of Insurance P. O. Box 149104 Austin, TX 78714-9104	C T Corporation System 1999 Bryan Street, Suite 900 Dallas, TX 75201-3136 Telephone: 214-979-1172 Fax: 214-754-0921 CT-Statecommunications@wolterskluwer.com
Utah	Commissioner of Insurance 3110 State Office Building Salt Lake City, UT 84114	C T Corporation System 1108 E. South Union Avenue Midvale, UT 84047 Telephone: 801-984-8160 CT-Statecommunications@wolterskluwer.com
Vermont	Secretary of State 127 State Street Montpelier, VT 05633	C T Corporation System 17 G W Tatro Drive Jeffersonville, VT 05464-9919 Telephone: 802-644-2913 Fax: 802-861-3226 CT-Statecommunications@wolterskluwer.com
Virginia	Commissioner of Insurance P. O. Box 1157 Richmond, VA 23218-1157	C T Corporation System 4701 Cox Rd, Suite 285 Glen Allen VA 23060-6808 (Henrico County) CT-Statecommunications@wolterskluwer.com
Washington	Commissioner of Insurance P. O. Box 40257 Olympia, WA 98504-0257	C T Corporation System 711 Capital Way S, Suite 204 Olympia, WA 98501-1267 Telephone: 360-357-6794 CTWADOI@wolterskluwer.com

State	*Insurance Office*	*Registered Agent*
West Virginia	Secretary of State 1900 Kanawha Blvd. East Building 1, Suite 157-K Charleston, WV 25305	C T Corporation System 5098 Washington St W, Ste. 407 Charleston, WV 25313-1561 Telephone: 304-776-1152 & 304-776-7787 Fax: 304-776-1806 CT-Statecommunications@wolterskluwer.com
Wisconsin	Commissioner of Insurance 125 South Webster Street Madison, WI 53703	C T Corporation System 301 South Bedford St., Suite 1 Madison, WI 53703 CT-Statecommunications@wolterskluwer.com
Wyoming	Commissioner of Insurance 106 East 6th Avenue Cheyenne, WY 82002	C T Corporation System 2232 Dell Range Blvd, Suite 200 Cheyenne, WY 82009 Telephone: 307-637-0949 Fax: 307-632-3886 CT-Statecommunications@wolterskluwer.com

All other terms and conditions of this Policy remain unchanged.

Signed at North Kingstown, Rhode Island on the 8th of July, 2025.

Signature  Authorized Representative

FALVEY INSURANCE GROUP

FALVEY CARGO UNDERWRITING

Endorsement No: W - 1

Effective date of this Endorsement: July 26, 2025

This Endorsement is attached to and forms a part of Policy Number: WC-FAL-175599

"Insured" or "Assured" Referred to in this Endorsement is Indaptus Therapeutics, Inc.

"Insurer" or "Assurer" Referred to in this Endorsement is as per Declarations Page or as endorsed thereon

5 POWERS WAR EXCLUSION CLAUSE

This endorsement modifies insurance provided under the following: Warcontract v01-jul-2013

It is understood and agreed that the following is attached:

In respect of coverage granted under the War risks clause American Institute (AIMU) Clauses (December 2, 1993) hereon, the following is to apply:

Where any war risks coverage is provided by underwriters, this (re)insurance excludes loss damage liability or expense arising from the outbreak of war (whether there be a declaration of war or not) between any of the following: United Kingdom, United States of America, France, the Russian Federation, the People's Republic of China.

All other terms and conditions of this Policy remain unchanged.

Signed at North Kingstown, Rhode Island on the 8th of July, 2025.

Signature J. Michael Falvey
Authorized Representative

FALVEY
CARGO UNDERWRITING

66 WHITECAP DRIVE
NORTH KINGSTOWN, RI 02852
Tel: 401 792-0144
Fax: 401 667-0573
Website: www.falveycargo.com

THE INSURANCE COMPANY SIGNATORY HERETO
(HEREINAFTER CALLED "THIS INSURER")
BY THIS POLICY OF MARINE CARGO INSURANCE
IN CONSIDERATION OF PREMIUM AS AGREED
DOES INSURE

"As Per Declaration Page"

and all subsidiaries, managed, owned or controlled companies or corporations and joint ventures as may now or hereafter exist and/or for whom The Insured receives instructions to insure and/or for who The Insured have or assume a responsibility to arrange insurance, whether contractually or otherwise, as their respective rights and interests may appear

(HEREINAFTER KNOWN AS "THE INSURED")

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1. NAMED INSURED:

In consideration of premium payable at the rate or rates hereinafter stated Underwriters, do insure:

"As Per Declarations Page" and all subsidiaries, managed, owned or controlled companies or corporations and joint ventures as may now or hereafter exist and/or for whom **The Insured** receives instructions to insure and/or for who **The Insured** have or assume a responsibility to arrange insurance, whether contractually or otherwise, as their respective rights and interests may appear hereinafter known as **The Insured.**

2. LOSS PAYEE:

Loss, if any, payable to **The Insured**, or order, in funds current in the United States of America, or to holders in due course of Policies or Certificates of Insurance issued hereunder in the same funds available or their equivalent in which such Policies or Certificates are written.

3. ATTACHMENT AND TERMINATION:

3.1 To attach on all shipments made on and after 12:00 a.m. Local Standard Time at the "Address of The Insured" effective **"As Per Declarations Page."** Notwithstanding the provisions of the Warehouse to Warehouse Clause and the Marine Extension Clause, risk shall attach hereunder from the time the subject matter insured becomes at **The Insured's** risk, and/or **The Insured** assumes responsibility, and continues whilst the subject matter is in transit and/or in store including whilst held as stock and/or undergoing processing and/or packing and/or preparation and/or consolidation and/or deconsolidation and/or wherever located whether within the course of transit or otherwise, with coverage hereunder to continue until **The Insured's** responsibility and/or risk ceases irrespective of terms of purchase and/or sale.

3.2 Including risks in customs as required, and transshipment, craft and barge risks, whether customary or otherwise.

4. CANCELLATION:

4.1 Subject to ninety (90) days written Notice of Cancellation, at last known address, by either party for Marine Risks.

4.2 Subject to forty-eight (48) hours written or telegraphic Notice of Cancellation, at last known address, by either party for War Risks, Strikes, Riots, and Civil Commotions.

4.3 Any such cancellation, however, is not to prejudice any coverage which had attached prior to the cancellation date designated in such notice, and coverage on goods and/or merchandise and/or property at locations shall terminate on the designated cancellation date after 12:00 a.m. local standard time, provided proper notice has been given.

5. GOODS INSURED AND INSURABLE INTEREST:

Lawful goods and/or merchandise and/or cargo of every kind and description incidental to **The Insured's** business as may be declared, the property of **The Insured**, or for which **The Insured** receives instructions to insure prior to shipment or prior to known or reported loss or accident, hereinafter called goods, consisting principally of, but not limited to **"As Per Declarations Page," and including packing materials,** consigned to or shipped by **The Insured**, or consigned to or shipped by others for **The Insured's** account or control and in which **The Insured** have an insurable interest including duty and/or freight and/or insurance and/or interest and/or advances and/or charges.

6. INSURING CONDITIONS:

6.1 Unless specifically provided for elsewhere in this policy and/or its endorsements or **"As Per Declarations Page"** all goods and/or merchandise insured under this policy are insured:

Against all risks of physical loss or damage from any external cause, except those risks as may be excluded by the warranties or exclusions specified in this policy, but always subject to the conditions of coverage specified below in this clause.

6.2 **These Insurers** also to pay for any physical loss or damage to the goods and/or merchandise and/or property and for any expense resulting from perils of the seas, fires, rovers, assailing thieves, jettisons, criminal barratry of the master and mariners, and all other like perils, losses and misfortunes, that have or shall come to the hurt, detriment, or damage of the interest insured or any part thereof, except as may be otherwise provided for herein (these risks are referred to as the **"Marine Perils**").

6.3 **These Insurers** also to pay for any physical loss or damage to the goods and/or merchandise and/or property and for any expense reasonably attributable to the stranding, sinking, burning, collision or contact of the vessel or craft with any external substance (ice included) other than water, but including the risks of jettison or washing overboard irrespective of percentage (these risks are referred to as the **"Free of Particular Average or FPA Perils**").

6.4 **These Insurers** also to pay for physical loss or damage to the goods and/or merchandise and/or property and for any expense resulting from explosion, howsoever and wheresoever occurring, except explosions resulting from those risks as may be excluded by the F.C.&S. and the S.R. & C.C. warranties, as specified in this policy (this risk is referred to as the "**Explosion Peril**") .

6.5 **These Insurers** also to pay for physical loss or damage to the goods and/or merchandise and/or property and for any expense resulting, while the goods and/or merchandise and/or property are on docks, wharves, quays or elsewhere on shore and during land transportation, from fire, smoke, sprinkler leakage, lightning, cyclone, hurricane, earthquake, windstorm, hail, landslide, volcanic eruption, flood, rising water, aircraft, objects falling from aircraft or collision, derailment or any accident to the conveyance or collapse or subsidence of docks, wharves, quays or structures (these risks are referred to as the "**Shore Perils"**) .

6.6 **These Insurers** also to pay for any physical loss of or damage to the goods and/or merchandise and/or property and for any expense resulting from the bursting of boilers, breakage of shafts or from any latent defect in the machinery, hull or appurtenances of the vessel and/or craft and/or conveyance, or from faults or errors in the navigation or management of the vessel and/or craft by the master, mariners, engineers or pilots (these risks are referred to as the **"Inchmaree Perils"**).

6.7 **These Insurers** is also to pay for any physical loss of or damage to the goods and/or merchandise and/or property and for any expense caused by fumigation howsoever and wheresoever caused and shall also indemnify **The Insured** for any charges and/or expenses incurred as a result of being ordered to fumigate or quarantine any goods and/or merchandise and/or property insured hereunder. However, this clause does not extend to cover loss or damage, charges or expenses due to customary fumigation applied prior to inception of risk (this risk is referred to as the "**Fumigation Peril**").

Wherever the words "ship", "vessel", "seaworthiness", "ship or vessel owner" appear in this policy, they are deemed to include also the words "aircraft", "airworthiness", "aircraft owner."

7. DEDUCTIBLE:

7.1 Each claim for loss or damage which results from a single loss occurrence shall be adjusted separately and from the amount of each such adjusted claim, a deductible of **"As Per Declarations Page**" shall apply; however, this deductible shall not apply to (i) survey fees, (ii) general average, salvage or special charges, (iii) loss, damage or expense arising from any FPA Perils, Inchmaree Perils or Explosion Peril, as defined elsewhere in this policy, (iv) loss, damage or expense covered under the Sue and Labor, Constructive Total Loss or Debris Removal clauses or the S.R. & C.C. Endorsement, (v) a total loss.

7.2 Each claim for loss or damage (regardless of number) arising from a covered event or arising during a single voyage or conveyance shall be adjusted as a single claim. An "event" shall be defined as a single accident or occurrence or a series or sequence of accidents or occurrences arising from the same cause.

7.3 In the event of a loss involving more than one coverage or section of this policy, including endorsements, the loss will be adjusted against each applicable coverage or policy section including endorsements by interest insured. However, in no event will **The Insured's** retained loss arising from any one event exceed the largest single applicable deductible herein.

7.4 In the event of a loss involving a locally arranged policy or policies and this policy, the deductibles applicable under all such policies shall be added together. However, in no event will **The Insured's** combined retained loss from any one event exceed the largest single applicable deductible herein. **This Insurer** agrees that it will reimburse or credit to **The Insured** any amount that exceeds the deductible applicable herein.

7.5 The deductible shall not be applied so as to reduce **This Insurer's** obligation to pay the full amount of any limit(s) of insurance set forth in this policy.

7.6 Notwithstanding the above, it is understood and agreed that the deductibles stated herein shall apply to losses resulting from theft or non-delivery, and from any loss determined to be a "constructive total loss" as determined under the Control of Damaged Merchandise Clause.

8. GEOGRAPHICAL SCOPE:

8.1 This policy covers all lawful shipments, at and from "**As Per Declarations Page**."

8.2 It is understood and agreed that **This Insurer** shall not provide cover nor be liable to pay any claim or provide any benefit hereunder to the extent that the provision of such cover, payment of such claim or provision of such benefit would expose **This Insurer** to any sanction, prohibition or restriction under United Nations resolutions or the trade or economic sanctions, laws or regulations of the European Union, United Kingdom or United States of America.

9. LIMIT OF INSURANCE - TRANSIT:

9.1 Attaching for 100 percent interest on all shipments coming within the scope of the policy. Unless otherwise agreed, **This Insurer** shall not be liable under this policy for more than "**As Per Declarations Page**" per any one conveyance or connecting conveyance, craft or at any one place at any one time.

9.2 Limits of Insurance are deemed on a "First Loss" Basis and accordingly the principals of average/co-insurance are waived by **This Insurer** if the total value at risk exceeds the limit of insurance set forth in Sub-Clause 9.1. Nothing in Sub-Clause 9.2 shall be construed to amend the limit of insurance set forth in Sub-Clause 9.1.

9.3 **This Insurer** shall pay in full claims for general average, salvage and special charges and for such expenses as are provided for in the Sue and Labor clause even though the sum insured may be less than the contributing value or actual value of the goods and/or merchandise and/or property insured under this policy.

9.4 The limit of insurance of **This Insurer** with respect to the coverages provided for in the General Average, Warehousing, Forwarding Charges and Clauses Covering Duty clauses shall be separate from, and equal in amount and in addition to, the limit of insurance set forth in Sub-Clause 9.1. and shall be in proportion to the sum hereby insured, but in no event to exceed an amount equal to limit of insurance set forth in Sub-Clause 9.1.

9.5 The limit of insurance of **This Insurer** with respect to the coverage provided for in Sue and Labor charges shall be separate from, and in addition to, the limit of insurance set forth in Sub-Clause 9.1. and shall be in proportion to the sum hereby insured, but in no event to exceed an amount equal to limit of insurance set forth in Sub-Clause 9.1.

9.6 The limit of insurance of **This Insurer** with respect to the coverage provided for in the Debris Removal clause shall be separate from and in addition to, the limit of insurance set forth in Sub-Clause 9.1. and shall be in proportion to the sum hereby insured, but in no event to exceed an amount equal to limit of insurance set forth in Clause 55, Debris Removal**.**

9.7 Privilege is granted to **The Insured** to insure in foreign currencies, losses to be payable in the same funds.

10. BASIS OF VALUATION:

10.1 Unless specifically provided for elsewhere in this policy and/or its endorsements or **"As Per Declarations Page"** or instructions to the contrary are given by **The Insured**, the goods and/or merchandise insured under this policy shall be valued as follows:

10.1.1 Goods and/or Merchandise and/or Property Under Invoice: Valued at amount of invoice, including all charges included in the invoice and including prepaid or advance freight and/or freight payable if not already included in the charges included in the invoice, plus 10%; or at an amount declared prior to any known or reported loss or accident, but in no event no less than the foregoing.

10.1.2 Used Goods and/or Used Merchandise and/or Used Property and/or Furnitures Fixtures and Equipment (FFE): Valued at replacement cost for goods and/or merchandise and/or property at the time of loss at the originally intended destination except that in respect to items for which replacement with identical property is impossible or impractical, the replacement cost shall be the cost of items similar to the damaged property and intended to perform the same function, and which may include improvements and technological advances.

10.1.3 If Shipped Free of Charge, or for an Amount Not Reflective of Actual Value or in the Absence of an Invoice: Valued at **The Insured's** cost to replace at the time of loss at the originally intended destination, including all materials, labor and direct costs.

10.1.4 For Additional or Amended Valuation Provisions: **"As Per Declarations Page"** or endorsement(s) attached thereto.

10.2 In the event **The Insured** receives instructions to value the goods and/or merchandise and/or property on a basis differing from the valuation provisions contained in this policy and/or its endorsements or **"As Per Declarations Page",** then the goods and/or merchandise and/or property are to be valued in accordance with such instructions, provided such valuation is declared and not objected to by **This Insurer** prior to any known or reported loss or accident.

10.3 Privilege is granted to **The Insured** to insure in foreign currencies. When the privilege is exercised, the proceeds paid under this policy are payable in the same currencies, however, at the option of **The Insured**, the proceeds under this policy are payable in United States dollars at the rate of exchange current on the date of the original sale or transaction as evidenced by invoice or contract or on the bill of lading shipment date, at **The Insured's** option.

11. DEPOSIT PREMIUM:

11.1 The consideration for all of the coverages provided in this policy, including contingent and extended coverages and including Strikes, Riots and Civil Commotions (S.R. & C.C.) and War Risks, if included in this policy, unless otherwise agreed, is the premium payable **"As Per Declarations Page."** In the event of cancellation of this policy or cancellation of an insurer's participation on this policy, return premiums shall be calculated on a daily pro rata basis, unless otherwise agreed.

11.2 **The Insured** shall report to **This Company** at anniversary, or as soon as possible thereafter, the applicable rating basis for the period and the earned premium shall be calculated thereon.

11.3 In the event the earned premium is in excess of the deposit, **The Insured** shall remit the additional premium to **This Company**.

11.4 In the event the earned premium is less than the deposit premium, a return premium, if any, of not more than the deposit premium less the minimum premium shall be given to **The Insured**.

12. SECURITY:

"As Per Declarations Page" through Falvey Cargo Underwriting. Reference to "**This Company**," if any, in the clauses attaching to and forming part of this cover, shall be deemed to read, "Falvey Cargo Underwriting" and references to "**The Insurer**" or "**This Insurer**" or "**These Insurers**" or "**Underwriters**" shall be deemed to read, "**The Insurers hereon**."

13. OPTIONAL INSURING CONDITIONS:

Notwithstanding the insuring conditions specified herein, **The Insured** is privileged to declare shipments subject to insuring conditions differing from those herein providing that such different insuring conditions are not intended to insure against risks not covered by this policy unless specifically agreed to by **This Insurer**. Additional premium or premium credit for optional insuring conditions to be agreed.

14. CARRIER/BAILEE CLAUSE:

Warranted that this insurance shall not inure, directly or indirectly, to the benefit of any carrier or bailee.

15. APPROVED CONVEYANCES:

15.1 This policy covers all shipments made by any conveyance, including but not limited to vessel, barge, truck, railcar and/or other waterborne and/or land and/or air conveyance, including shipments by mail and parcel post, messengers and couriers and/or otherwise, and all connecting conveyances.

15.2 Wherever the words "ship," "vessel," "seaworthiness," "ship owner," or "vessel owner" appear in this policy, they are deemed to also include the words "aircraft," "airworthiness," and "aircraft owner.

16. VESSEL CLASSIFICATION CLAUSE:

16.1 The premium noted herein is effective with respect to shipments of insured goods and/or merchandise and/or property which are shipped on metal-hulled, self-propelled vessels which are not over 30 years of age nor less than 1,000 net registered tons and which are classed A1 American Record or equivalent by a member of the International Association of Classification Societies; or vessels over 30 years of age which are approved by The Insurer, and which are not less than 1,000 net registered tons and classed as above, but only while operating in their regular trade.

16.2 Shipments of insured goods and/or merchandise and/or property which are shipped on vessels not provided for by the above are also covered at additional premiums to be agreed, if any.

17. ACCUMULATION:

Should there be any other accumulation of goods in transit beyond such limits of liability by reason of interruption of transit and/or other similar circumstances beyond the control of **The Insured**, or by reason of any casualty, or at a transshipping point, or on a connecting conveyance, **This Insurer** shall be liable for the full amount at risk, but in no event are Underwriters liable hereunder for more than twice the relevant conveyance limit of liability as set forth in Sub Clause 9.1.

18. PARAMOUNT WARRANTIES:

The following Warranties shall be paramount and shall not be modified or superseded by any other provision included herein or stamped or endorsed hereon unless such other provision refers specifically to the risks excluded by these Warranties and expressly assumes said risks:

18.1 F.C. & S. WARRANTY (APRIL 3, 1980):

NOTWITHSTANDING ANYTHING HEREIN CONTAINED TO THE CONTRARY THIS INSURANCE IS WARRANTED FREE FROM:

(1) capture, seizure, arrest, restraint, detainment, confiscation, preemption, requisition or nationalization, and the consequences thereof or any attempt thereat, whether in time of peace or war and whether lawful or otherwise;

(2) all loss, damage or expense, whether in time of peace or war, caused by (a) any weapon of war employing atomic or nuclear fission and/or fusion or other reaction or radioactive force or matter or (b) any mine or torpedo;

(3) all consequences of hostilities or warlike operations (whether there be a declaration of war or not), but this warranty shall not exclude collision or contact with aircraft, or with rockets or similar missiles (other than weapons of war) or with any fixed or floating object (other than mine or torpedo), stranding, heavy weather, fire or explosion unless caused directly (and independently of the nature of the voyage or service which the vessel concerned or, in the case of collision, any other vessel involved therein, is performing) by a hostile act by or against a belligerent power, and for the purposes of this warranty "power" includes any authority maintaining naval, military or air forces in association with a power;

(4) the consequences of civil war, revolution, rebellion, insurrection, or civil strife arising therefrom; or from the consequences of the imposition of martial law, military or usurped power; or piracy.

18.2 S.R. & C.C. WARRANTY (APRIL 3, 1980):

NOTWITHSTANDING ANYTHING HEREIN CONTAINED TO THE CONTRARY THIS INSURANCE IS WARRANTED FREE FROM:

(1) strikes, lockouts, labor disturbances, riots, civil commotions, or the acts of any person or persons taking part in any such occurrences or disorders;

(2) vandalism, sabotage or malicious act, which shall be deemed also to encompass the act or acts of one or more persons, whether or not agents of a sovereign power, carried out for political, terroristic or ideological purposes and whether any loss, damage or expense resulting therefrom is accidental or intentional.

18.3 AIMU EXTENDED RADIOACTIVE CONTAMINATION EXCLUSION CLAUSE WITH U.S.A. ENDORSEMENT (March 1, 2003):

This clause shall be paramount and shall override anything contained in this insurance inconsistent therewith.

(1) In no case shall this insurance cover loss damage liability or expense directly or indirectly caused by or contributed to by or arising from

1.1 ionizing radiations from or contamination by radioactivity from any nuclear fuel or from any nuclear waste or from the combustion of nuclear fuel

1.2 the radioactive, toxic, explosive or other hazardous or contaminating properties of any nuclear installation, reactor or other nuclear assembly or nuclear component thereof

1.3 any weapon or device employing atomic or nuclear fission and/or fusion or other like reaction or radioactive force or matter

1.4 the radioactive, toxic, explosive or other hazardous or contaminating properties of any radioactive matter. The exclusion in this sub-clause does not extend to radioactive isotopes, other than nuclear fuel, when such isotopes are being prepared, carried, stored, or used for commercial, agricultural, medical, scientific or other similar peaceful purposes.

RADIOACTIVE CONTAMINATION EXCLUSION CLAUSE
(U.S.A. ENDORSEMENT)

This insurance is subject to the Extended Radioactive Contamination Exclusion Clause (March 1, 2003) provided that if fire is an insured peril and where the subject matter insured or, in the case of a reinsurance, the subject matter insured by the original insurance, is within the U.S.A., its islands, onshore territories or possessions

and

a fire arises directly or indirectly from one or more of the causes detailed in Sub-Clauses 1.1, 1.2, and 1.4 of the Extended Radioactive Contamination Exclusion Clause March 1, 2003 any loss or damage arising directly from that fire shall, subject to the provisions of this insurance (reinsurance), be covered, EXCLUDING however any loss damage liability or expense caused by nuclear reaction**,** nuclear radiation, or radioactive contamination arising directly or indirectly from that fire.

18.4 AIMU CHEMICAL, BIOLOGICAL, BIO-CHEMICAL, AND ELECTROMAGNETIC EXCLUSION CLAUSE (March 1, 2003):

This clause shall be paramount and shall override anything contained in this insurance inconsistent therewith.

In no case shall this insurance cover loss, damage, liability or expense directly or indirectly caused by or contributed to or arising from an actual or threatened act involving a chemical, biological, bio-chemical or electromagnetic weapon, device, agent or material when used in an intentionally hostile manner.

18.5 DELAY WARRANTY:

This insurance is warranted free from and shall not cover, loss of market or for loss, damage, expense or deterioration arising from delay, whether caused by a peril insured against or otherwise, unless such risks are expressly assumed in writing herein. This insurance shall in no case be deemed to extend to cover loss, damage or expense proximately caused by delay or inherent vice or the nature of the subject matter insured unless otherwise specifically provided for herein.

CARGO CLAUSES

19. WAREHOUSE TO WAREHOUSE CLAUSE:

This insurance attaches from the time the goods leave the warehouse or place of storage at the place named in the policy, certificate or declaration for the commencement of the transit and continues until:

19.1 the goods are delivered to the Consignee's or other final warehouse or place of storage at the destination named in the policy, certificate, or

19.2 the goods are delivered to any other warehouse or place of storage, whether prior to or at the destination named in the certificate, declaration, or special policy, which **The Insured** elects to use either:

(i) for storage other than in the ordinary course of transit, or
(ii) for allocation or distribution, or

19.3 the expiry of sixty (60) days (30 days on air shipments) after completion of discharge from the overseas vessel or aircraft, whichever shall first occur.

In the event of delay in excess of the limits specified in 19.3 above arising from circumstances beyond the control of **The Insured**, held covered for an additional thirty (30) days provided **The Insured** give notice thereof to **This Insurer** as promptly as possible but in any event prior to the expiry of the said (30) days period.

20. MARINE EXTENSION CLAUSES:

20.1 This insurance attaches from the time the goods leave the warehouse or place of storage at the place named in the policy, certificate or declaration for the commencement of the transit and continues until the goods are delivered to the final Warehouse at the destination named in the Policy, Certificate or Declaration, or a substituted destination as provided in Clause 20.3 hereunder.

20.2 This insurance specially to cover the goods during:

(i) deviation, delay, forced discharge, reshipment, transshipment and

(ii) any other variation of the adventure arising from the exercise of a liberty granted to the shipowner or charterer under the contract of affreightment.

20.3 In the event of the exercise of any liberty granted to the shipowner or charterer under the contract of affreightment whereby such contract is terminated at a port or place other than the original insured destination, the insurance continues until the goods are sold and delivered at such port or place; or, if the goods be not sold but are forwarded to the original insured destination or to any other destination this insurance continues until the goods have arrived at final warehouse as provided in **Clause 19**.

20.4 If while this insurance is still in force and before the expiry of fifteen (15) days from midnight of the day on which the discharge overside of the goods hereby insured from the overseas vessel at final port of discharge is completed, the goods are re-sold (not being a sale within the terms of Clause 20.3) and are to be forwarded to a destination other than that covered by this insurance, the goods are covered hereunder while deposited at such port of discharge until again in transit or until the expiry of the aforementioned (15) days, whichever shall first occur. If a sale is effected after the expiry of the aforementioned (15) days while this insurance is still in force the protection afforded hereunder shall cease as from the time of the sale.

20.5 Held covered in case of change of voyage or of any omission or error in the description of the interest, vessel or voyage.

20.6 This insurance shall in no case be deemed to extend to cover loss damage or expense proximately caused by delay or inherent vice or nature of the subject matter insured.

20.7 It is a condition of this insurance that there shall be no interruption or suspension of transit unless due to circumstances beyond the control of **The Insured**.

21. SOUTH AMERICAN ENDORSEMENT:

It is hereby understood and agreed that the following clause will apply to all shipments insured in U.S. currency and shipped to South America:

"Notwithstanding anything contained elsewhere herein to the contrary (particularly the Warehouse to Warehouse and Marine Extension Clauses) the insurance provided hereunder shall continue to cover for sixty (60) days {ninety (90) days on shipments via the Magdalena River} after completion of discharge of the overseas vessel at port of destination or until the goods are delivered to the final warehouse at destination, whichever may first occur, and shall then terminate."

"The time limit referred to above to be reckoned from midnight of the day on which the discharge of the overseas vessel is completed."

22. CRAFT, ETC., CLAUSE:

Including transit by craft, raft and/or lighter to or from the vessel. Each craft raft or lighter to be deemed a separate insurance. Also to cover any special or supplementary lighterage to take the goods to or from the warehouse. **The Insured** is not to be prejudiced by any agreement exempting lightermen from liability.

23. DEVIATION:

This insurance shall not be vitiated by any unintentional error in description of vessel, voyage or interest, or by deviation, over-carriage, change of voyage, transshipment or any other interruption of the ordinary course of transit, from causes beyond the control of **The Insured**. It is agreed, however, that any such error, deviation or other occurrence mentioned in the above shall be reported to **This Company** as soon as known to **The Insured**, and additional premium paid if required.

24. WAREHOUSING, FORWARDING CHARGES:

24.1 In the event of frustration, interruption, or termination of the insured voyage, or similar events beyond the control of **The Insured** and in addition to the limit(s) of insurance set forth elsewhere in this policy, **This Insurer** agrees to pay all landing, warehousing, transshipping, forwarding and other expenses incurred by **The Insured** to forward the insured goods and/or merchandise and/or property to the original or substituted final destination should same be incurred by reason of a risk insured against, including as a result of the insolvency or financial default of the owner, charterer, manager or operator of the vessel or other conveyance.

24.2 **This Insurer** will also pay any partial loss or damage to the shipment arising from any loading, transshipment, forwarding or discharge at a port of distress.

24.3 Also to pay the full insured value of any package, piece or unit in the shipment which is totally lost in loading, transshipment, forwarding or discharge.

25. G/A AND SALVAGE CLAUSE:

25.1 This insurance also covers general average, salvage and special charges and expenses which are payable for the goods and/or merchandise and/or property insured under this policy as provided in the contract of affreightment or in accordance with the laws and usages at the port of destination or in accordance with a foreign statement.

25.2 For the purpose of claims for general average contributions and salvage charges recoverable hereunder, the subject-matter insured shall be deemed to be insured for its full contributory value.

25.3 General average deposits shall be payable on production of general average deposit receipts.

26. CONSOLIDATION AND/OR REPACKING:

It is hereby understood and agreed that notwithstanding anything contained elsewhere to the contrary (particularly the Warehouse to Warehouse and Marine Extension Clauses) the insurance provided under this policy shall also cover the goods insured while on the premises of freight forwarders, export packers, consolidators, truckers, warehousemen, suppliers or others, for the purpose of packing or repacking, consolidation, deconsolidation, containerization, or decontainerization anywhere in the World whether prior to loading or after discharge from overseas vessel for a period not exceeding sixty (60) days after arrival at such premises. Thereafter the insurance continues whilst in transit until the goods are delivered to the final warehouse at destination as provided in the Attachment and Termination and Warehouse to Warehouse and Marine Extension Clauses. Held covered at an additional premium, if required, to be determined for delays in excess of 60 days.

27. BOTH TO BLAME CLAUSE:

27.1 In the event the bill(s) of lading, charter party or contract of carriage for the goods and/or merchandise and/or property insured under this policy contain the so-called "Both to Blame Collision Clause," **This Insurer** agrees (provided and to the extent that the loss, damage or claim so set off, recouped or recovered is the kind of loss, damage or expense recoverable under this policy) to indemnify **The Insured** for the amount which it is legally bound to pay to the shipowner, charterer, or carrier under such clause.

27.2 In the event such liability is asserted, **The Insured** agrees to notify **This Insurer** who shall have the right, at its own cost and expense, to defend **The Insured** against such claim and **The Insured** agrees to provide reasonable assistance in any defense.

28. BILL OF LADING, ETC., CLAUSE:

The Insured is not to be prejudiced by the presence of the negligence clause and/or latent defect clause in the Bills of Lading and/or Charter Party and/or Contract of Affreightment and/or other contract. The seaworthiness of the vessel as between **The Insured** and **This Insurer** is hereby admitted and the wrongful act or misconduct of the shipowner, charterer or carrier, or their servants causing a loss is not to defeat the recovery by an innocent Insured if the loss in the absence of such wrongful act or misconduct would have been a loss recoverable on the policy. With leave to sail with or without pilots, and to tow and assist vessels or craft in all situations, and to be towed.

29. FRAUDULENT BILLS OF LADING:

29.1 This policy also covers physical loss of or damage to goods insured through the unknowing acceptance by **The Insured** and/or their Agents and/or Shippers of fraudulent Bills of Lading and/or Shipping Receipts and/or Messenger Receipts. In no event does this cover solely financial loss from fraud or misstatement.

29.2 Also to cover loss of or damage to goods insured caused by the utilization of legitimate Bills of Lading and/or other shipping documents without the authorization and/or consent of **The Insured** or its agents.

30. RELEASED BILL OF LADING CLAUSE:

Privilege is hereby given to ship goods covered by this Policy under usual released or limited liability bills of lading or shipping receipts without prejudice to the insurance hereunder.

31. LABELS CLAUSE:

In case of damage affecting labels, capsules, wrappers or cartons, **This Insurer**, if liable therefor under the terms, conditions and warranties of this policy, shall not be liable for more than an amount sufficient to pay the cost of new labels, capsules, wrappers or cartons, and the cost of reconditioning the goods and/or merchandise and/or property, but in no event shall **This Insurer** be liable for more than the insured value of the damaged goods and/or merchandise and/or property.

32. RECOOPERING/REPACKING:

32.1 In the event the packaging of the goods and/or merchandise and/or property insured under this policy is damaged due to a risk insured against as a result of which it is necessary, in the sole judgment of **The Insured**, to recooper or provide new packaging, **This Insurer** will pay the cost of recoopering and/or the cost of new packaging.

32.2 In respect of packaging which falls outside the above provisions, it is agreed that should the outer packaging be damaged from an insured risk which renders the insured goods and/or merchandise and/or property unfit for on-shipment or distribution, irrespective of the final destination shown herein, **This Insurer** will pay the expense of reasonable repackaging, provided such damage occurred during the currency of this insurance.

33. BRANDS OR TRADEMARKS CLAUSE:

33.1 In case of damage to goods and/or merchandise and/or property insured under this policy bearing a brand or trademark, the sale of which in any way carries or implies a guarantee, the salvage value of such damaged goods and/or merchandise and/or property shall be determined after removal of all brands and trademarks.

33.2 With respect to packaging from which the brand or trademark cannot be removed, the contents shall be transferred into plain packaging, subject always to the consent of **The Insured**.

33.3 With respect to any goods and/or merchandise and/or property for which it is deemed by **The Insured** to be impractical to destroy all evidence of **The Insured's** connection therewith, This Insurer agrees to waive its right to salvage and **The Insured** is granted the option to destroy such damaged goods and/or merchandise and/or property.

33.4 The cost to remove brands and trademarks, as well as the cost to remove the contents from their original packaging and transfer them into plain packaging, shall be borne by **This Insurer**, but in no event shall **This Insurer** be liable for more than the insured value of the damaged goods and/or merchandise and/or property.

34. MACHINERY CLAUSE:

When the goods and/or merchandise and/or property insured under this policy includes a machine or other article consisting when complete for sale or use, of several parts, then in case of loss or damage covered by this insurance to any part of such machine or other article, Underwriters shall be liable only for the proportion of the insured value applicable to the part or parts lost or damaged, or at **The Insured's** option, for the cost and expense, of replacing or repairing, assembling or duplicating the lost or damaged part or parts (including any and all expediting, labor and installation charges) and all other necessary charges so that the machine or article is restored to its condition at the time of shipment.

35. INSUFFICIENCY OF PACKING CLAUSE:

35.1 In the event of a claim being made for loss or damage which is alleged to be caused by insufficiency or unsuitability of packing or preparation of the insured goods and/or merchandise and/or property, **This Insurer** hereby agrees that it will not assert such alleged insufficiency or unsuitability as a defense against the claim in any case where the packing or preparation was carried out by a party other than **The Insured** making claim and the insufficiency or unsuitability arose without **The Insured's** privity or knowledge.

35.2 For the purpose of this Clause, "packing" shall be deemed to include stowage in a container, trailer or rail car.

36. DUTY OF INSURED:

It is the duty of **The Insured** and their agents, in all cases, to take such measures as may be reasonable for the purpose of averting or minimizing a loss and to ensure that all rights against carriers, bailees, or other third parties are properly preserved and exercised.

37. WAIVER CLAUSE:

It is expressly declared and agreed that no acts of Underwriters or **The Insured** in recovering, saving or preserving the property insured shall be considered as a waiver or acceptance of abandonment.

38. SUE AND LABOR CLAUSE:

38.1 In the case of any imminent or actual loss or misfortune, it shall be lawful and necessary to and for **The Insured**, its factors, servants and assigns, to sue, labor and travel for, in and about the defense, safeguard and recovery of the goods and/or merchandise and/or property and/or interest insured hereunder, or any part thereof, without prejudice to this insurance.

38.2 The acts of **The Insured** or **This Insurer** in recovering, saving and preserving the insured goods and/or merchandise and/or property, shall not be considered a waiver or an acceptance of abandonment.

38.3 **This Insurer** will pay all such sue and labor expenses subject to the limit of insurance set forth elsewhere in this policy.

39. INTERRUPTION OF TRANSIT OF DAMAGED GOODS:

It is agreed that goods taken out of ordinary transit upon instructions of surveyors appointed by or on behalf of Underwriters for the purpose of establishment of loss or damage, shall be held covered, subject to the original terms and conditions applying to such shipment, without payment of additional premium or advice to Underwriters, during such interruption or suspension of transit until disposed of by delivery to and acceptance by the original consignee or by sale or otherwise, provided that during such interruption or suspension **The Insured** complies with the surveyor's instructions.

40. CONCEALED DAMAGE/DELAY IN OPENING:

40.1 With respect to goods and/or merchandise and/or property insured under this policy which are unloaded and received into the custody and control of the receiver at the warehouse, store or other location at destination ("date of receipt"), but are not immediately unpacked, then any damage to the goods and/or merchandise and/or property not discovered until they are unpacked shall, in the absence of proof to the contrary and provided they are unpacked within the 90th day after the date of receipt, be deemed to have occurred during the period of coverage under this policy.

40.2 If damage is discovered after the 90 day period, but the damage occurred during the period of coverage under this policy, the burden to show when the damage occurred shall revert to **The Insured**.

40.3 Nothing contained in this Clause shall be construed to limit or reduce the coverage provided in this policy.

41. **RETURNED AND/OR REFUSED SHIPMENTS:**

This insurance covers, subject to the applicable insuring conditions set forth elsewhere in this policy, all shipments which may be refused and are to be returned by the consignee or others while awaiting shipment or reshipment and until received by **The Insured** or otherwise disposed of.

42. DEMURRAGE CHARGES:

If **The Insured** is directed by **This Insurer** to retain a container, trailer or rail car and if **The Insured** is assessed a late penalty and/or demurrage charge for the holding of the container, trailer or rail car past the return date, **This Insurer** will pay late penalties and demurrage charges. The amount **This Insurer** will pay shall be the charges assessed until such time as **This Insurer** and **The Insured** agree that the container, trailer or rail car may be released.

43. POLLUTION EXCLUSION CLAUSE:

This policy will not indemnify **The Insured** against any sum(s) paid, nor insure against any liability, with respect to any loss, damage, cost, liability, expense, fine or penalty of any kind or nature whatsoever, and whether statutory or otherwise, incurred by or imposed on **The Insured**, directly or indirectly, in consequence of, or with respect to, the actual or potential discharge, emission, spillage or leakage upon or into the seas, waters, land or air, of oil, fuel cargo, petroleum products, chemicals or other substances of any kind or nature whatsoever. This exclusion, however, shall not apply to sums paid or payable, or liability of **The Insured**, for the physical loss of the property discharged, emitted, spilled, or leaked, PROVIDED, that such sums or such liability, is covered elsewhere under the terms and conditions of this policy.

44. EXPEDITING EXPENSES CLAUSE:

In consideration of the premium paid hereunder, the Underwriters agree to indemnify **The Insured** in respect of extra charges for overtime work, night work, work on a public holiday(s) and express freight;

PROVIDED ALWAYS:

1. that such extra charges are incurred in connection with any loss of or damage to the property insured for which indemnity is granted under this insurance;
   and
2. that such extra charges are limited to 150% of the normal charges in the aggregate in respect of each and every happening giving rise to a claim under this insurance.

But in no event to exceed an amount equal to the limit of insurance set forth **"As Per Declarations Page."**

45. OTHER INSURANCE:

45.1 In case the goods and/or merchandise and/or property, insured under this policy are covered by other insurance (except as hereinafter provided), the covered loss, damage or expense shall be collected from the several policies in the order of the date of their attachment.

45.2 Insurances attaching on the same date are deemed simultaneous and are to contribute pro rata; provided, however, that where any fire insurance, or any insurance (including fire) taken out by any carrier or bailee (other than **The Insured**) is available to the beneficiary of this policy, or would be so available if this insurance did not exist, then this insurance shall be void to the extent that such other insurance is or would have been available.

45.3 It is agreed, nevertheless, that where **This Insurer** is thus relieved of a liability because of the existence of other insurance, **This Insurer** shall receive and retain the premium payable under this policy and, in consideration thereof, shall guarantee the solvency of the companies and/or insurers who issued such other insurance and the prompt collection of the loss, damage or expense thereunder, but only to the same extent that **This Insurer** shall have been relieved of insurance by reason of the terms of this Clause and not exceeding, in any case, the amount which would have been collectible under this policy if such other insurance did not exist.

46. INSURANCE OF DEDUCTIBLE:

Notwithstanding anything contained herein or endorsed hereon to the contrary; particularly the Other Insurance clause, it is understood and agreed that **The Insured** is given permission to place specific insurance on the deductible **"As Per Declarations Page"** or a portion thereof, to carriers or bailees of their goods without penalty of adjustment by Underwriters in the event of an actual recovery by **The Insured** from such carrier or bailee. In the event the amount recovered from the carrier or bailee exceeds the declared value or deductible, whichever is less, the excess amount will be adjusted from the gross amount of the claim as a recovery from the carrier.

47. WAIVER AND/OR RELEASE:

Privilege is given to **The Insured** to enter into and to accept contracts and agreements and any and all other documents (whether for carriage or otherwise) from any third party, containing usual waivers and/or releases of liabilities, provided such acceptance is made prior to any known or reported loss or accident**.**

48 DIFFERENCE IN CONDITIONS, INCREASED VALUE, GUARANTEE OF COLLECTIBILITY, CONTINGENCY:

It is agreed that this policy also covers goods and/or merchandise purchased by **The Insured** on C.I.F. terms or other terms of purchase whereby marine insurance is provided by the seller, or shipments insured and carried under tariffs providing insurance are covered hereunder (**The Insured's** interest being hereby admitted), subject to any or all of the following clauses:

48.1 DIFFERENCE IN CONDITIONS:

48.1.1 This insurance is extended to cover the difference in the terms, conditions and warranties between the terms, conditions and warranties of such other insurance and the terms, conditions and warranties of this insurance, if the goods and/or merchandise and/or property would otherwise have been insured hereunder.

48.1.2 All goods and/or merchandise and/or property insured under this Clause shall be valued as per the valuation provisions set forth elsewhere in this policy.

48.1.3 It is noted and agreed that where **The Insured** is obliged by legislation or otherwise to arrange insurance locally, it shall continue to have the full benefit and protection of this insurance for any difference between this insurance and the terms, conditions and warranties in the insurance arranged elsewhere.

48.1.4 It is agreed that nothing in this Clause shall be construed to extend the obligation of **This Insurer** to pay more than the limit(s) of insurance set forth elsewhere in this policy.

48.2 INCREASED VALUE:

48.2.1 This insurance shall also cover increased values and/or profits on shipments purchased by **The Insured** on C.I.F. terms or other similar terms under which the seller provides transit insurance for the account of **The Insured**.

48.2.2 In the event of a total or constructive total loss of the shipment, the increased values and/or profits shall be the difference between the amount of the insurance actually provided by the seller and the value of the shipment as calculated under the valuation provisions set forth elsewhere in this policy.

48.2.3 In the event of a partial loss of the shipment, **This Insurer** shall not be liable under Sub-Clause 48.2.1 for a greater percentage of the loss, damage or expense than would be payable on the shipment if it had originally been insured by **This Insurer**.

48.2.4 The coverage provided in this Clause shall be free of claims for general average, salvage and special charges and expenses except on the portion of the contributory value of the shipment in excess of the amount actually insured and only if uncollectible under the insurance provided by the seller.

48.2.5 The coverage provided in this Clause shall be without benefit of salvage unless the terms of the insurance provided by the seller permit participation.

48.3 GUARANTEE OF COLLECTIBILITY:

48.3.1 With respect to all goods and/or merchandise and/or property purchased by **The Insured** on C.I.F. or similar terms, where the seller is required to furnish insurance, **This Insurer** guarantees collection of any claim recoverable under the seller's transit insurance, but only to the extent the claim would be recoverable under the terms, conditions and warranties set forth in this policy if the goods and/or merchandise and/or property had been insured hereunder.

48.3.2 In no event shall this insurance inure to the benefit of the seller or his insurer, and **The Insured** agrees to make, and will make, all reasonable efforts to collect the full amount of any loss, damage or expense from the seller and his insurer, but in the event **The Insured** is unsuccessful in making a recovery, Underwriters will advance to **The Insured** the amount of the uncollected loss, damage or expense as a loan without interest.

48.4 CONTINGENCY INSURANCE – UNPAID VENDOR:

48.4.1 This insurance is extended to cover the interest of **The Insured**, as a vendor in a credit transaction, on all shipments made by **The Insured** on terms under which **The Insured** is not obliged to furnish transit insurance.

48.4.2 **This Insurer** agrees to prompt collection of losses, damages and expenses otherwise coming within the terms, conditions and warranties of this insurance in connection with shipments for which **The Insured** has not been paid. **This Insurer** will advance to **The Insured** the amount of the loss, damage or expense, as a loan without interest. Such advance shall be repayable upon, but subject to and only to the extent of (i) the receipt of the purchase price by **The Insured**, or (ii) any recovery received by **The Insured** from insurance effected by the buyer or otherwise.

48.4.3 It is agreed that the coverage provided under the terms of this Clause shall be subject to the applicable terms, conditions and warranties set forth elsewhere in this policy.

48.4.4 All goods and/or merchandise and/or property insured under this Clause shall be valued as per the valuation provisions set forth elsewhere in this policy.

The Insured agrees not to divulge the existence of this coverage, except as between The Insured and/or Underwriters and/or This Company.

49. DROP SHIPMENTS:

This policy is extended to cover shipments where **The Insured** has an insurable interest and arranges for shipment but may never take actual title or possession to the goods and/or merchandise.

50. F.O.B., F.A.S., C&F SALES:

50.1 This insurance is extended to cover and will attach to goods and/or merchandise and/or property sold by **The Insured** on F.O.B., F.A.S., and C. & F. terms, or on similar terms, whereby **The Insured** is not required to provide transit insurance, from the time the goods and/or merchandise and/or property, or any portion thereof, depart from the warehouse, store, factory, or other location at the initial point of shipment (including while loaded in railroad cars while in or on private sidings prior to the issuance of the railroad bill(s) of lading) and continuing thereafter until all of the goods and/or merchandise and/or property are delivered alongside the overseas vessel or other conveyance or loaded on board the overseas vessel or conveyance as per the terms of sale.

50.2 It is agreed that the coverage provided under the terms of this Clause shall be subject to the applicable terms, conditions and warranties set forth elsewhere in this policy.

51. ADMITTED INSURANCE-DIFFERENCE IN CONDITIONS:

It is agreed that where **The Insured** or any of their Associated, Affiliated or Companies or Partners are obligated by legislation or otherwise to arrange insurance locally, they shall continue to have the full benefits of these insurances in respect to difference in perils insured, definitions, conditions and/or limits of insurance.

52. NON-ADMITTED INSURANCE - TAX CLAUSE:

In the event of a loss payable under this policy to a foreign subsidiary of **The Insured**, where it is not legally permissible to pay the claim in the country of the loss, it is agreed that **This Insurer** will pay **The Insured** the income tax **The Insured** must pay on the recovered claim, not to exceed **10%** of the recovered claim amount.

53. SPECIAL POLICIES/ISSUANCE OF CERTIFICATES:

53.1 Unless otherwise specifically agreed, it is a condition of this policy that **The Insured** shall declare to Broker of Record, **"As Per Declarations Page"** for transmission to This Insurer, as soon as practicable, copies of all certificates, special policies, declarations and endorsements for each and every shipment coming within the terms of this policy, whether arrived or not.

53.2 Authority is hereby given **The Insured** to issue and countersign **This Insurer's** certificates and special policies (including endorsements thereto) on any and all shipments insured under this policy, but only subject to the terms, conditions and warranties of this policy.

53.3 Nothing in this Clause shall be deemed to require **The Insured** to declare to **This Insurer** shipments covered under the following clauses found elsewhere in this policy: (i) F.O.B., F.A.S., C&F Sales, (ii) Difference in Conditions, (iii) Contingent Interest/Unpaid Vendors or (iv) Guarantee of Collectibility.

53.4 Permission is also granted to **The Insured** to attach the London Institute Cargo Clauses and War, Strikes, Riots and Civil Commotions Clauses or other London or American Institute Clauses to special policies and/or certificates of insurance where such clauses are required by the terms of sale, letter of credit or other banking requirements. When such an attachment is made, the attached clauses are deemed to be added to this policy and the terms and conditions in such clauses shall override any inconsistent term, condition or warranty in this policy and shall be controlling to the extent of any inconsistency.

53.5 If the terms and conditions of such attached clauses provide broader coverage than those in this policy, **This Insurer** is entitled to additional premium, if any, to be agreed.

54. GOVERNMENTAL DAMAGE:

54.1 DELIBERATE DAMAGE - POLLUTION HAZARD:

This insurance is extended to cover, subject to the applicable insuring terms, conditions and warranties set forth elsewhere in this policy, loss of and damage to an insured shipment directly caused by a governmental authority acting for the public welfare to prevent or mitigate a pollution hazard or threat thereof, provided that absent the governmental action, the shipment would have sustained physical loss or damage as a result of the occurrence which prompted the governmental action and would have resulted, subject to the terms, conditions and warranties in this policy, in a claim recoverable under this policy.

54.2 DELIBERATE DAMAGE - CUSTOMS SERVICE:

This insurance also covers, notwithstanding the F.C. & S. warranty specified in this policy, and subject to all other insuring terms, conditions and warranties set forth elsewhere in this policy, physical loss of and damage to the shipment arising out of the performance of inspection duties by customs service agents or other duly constituted governmental agencies.

54.3 GOVERNMENTAL DAMAGE - CONFLAGRATION:

Notwithstanding anything contained in this Contract, it is understood and agreed that property which is insured under this Contract is also covered against the risk of damage or destruction by civil authority during a conflagration or for the purpose of retarding the same; provided that neither such conflagration nor such damage or destruction is caused or contributed to by War perils elsewhere excluded herein.

55. DEBRIS REMOVAL CLAUSE:

55.1 This insurance also covers expenses incurred by **The Insured** to remove and dispose of any remainder or residue of the insured goods and/or merchandise and/or property, including packing materials, which may be occasioned by a loss or damage caused by any of the risks insured against except that **This Insurer** shall not be liable under this Clause for more than 10% of the policy limit of insurance set forth elsewhere in this policy.

55.2 Nothing in this Clause, however, shall be construed to extend cover to include any expenses incurred by **The Insured** to remove or dispose of the remainder or residue of the insured goods and/or merchandise and/or property if **The Insured** is responsible for such removal or disposal under any pollution statute. Expenses incurred by **The Insured** to accomplish such removal or disposal are not covered under this policy.

56. SHORTAGE FROM CONTAINERS:

This Insurer is to pay for shortage of contents, meaning thereby, the difference between the number of items loaded or alleged to have been loaded in the container, trailer or railcar as per the shipper's or supplier's invoice or packing list and the number of items removed therefrom and received by **The Insured** or its agent at the time the container, trailer or rail car is unloaded howsoever, wheresoever and whensoever occurring.

57. CARGO ISM FORWARDING CHARGES CLAUSE:

In consideration of an additional premium to be agreed, this insurance is extended to reimburse **The Insured**, up to the limit of the sum insured for the voyage, for any extra charges properly and reasonably incurred in unloading, storing and forwarding the subject-matter to the destination to which it is insured hereunder following release of cargo from a vessel arrested or detained at or diverted to any other port or place (other than the intended port or destination.) where the voyage is terminated due either

(a) to such vessel not being certified in accordance with the ISM Code

OR

(b) To a current Document of Compliance not being held by her owners or operators

as required under the SOLAS Convention 1974 as amended

This clause, which does not apply to General Average or Salvage or Salvage Charges, is subject to all other terms conditions and exclusions contained in the policy and to JCC Cargo ISM Endorsement JC98/019.

58. CLAUSES COVERING DUTY:

58.1 In addition to the limit(s) of insurance set forth elsewhere in this policy, This Insurer agrees to pay duties, value added taxes (V.A.T.) and other charges paid by or which become due from **The Insured** with respect to shipments for which a claim is paid by **This Insurer**.

58.2 **The Insured** will, in all cases, use reasonable efforts to obtain abatement or refund of duties and other charges paid or claimed in respect of goods and/or merchandise and/or property lost, damaged or destroyed.

58.3 This insurance on duty, V.A.T. and other charges shall terminate at the end of the import movement covered under this policy (including the Warehouse to Warehouse and Marine Extension clauses) but nothing contained in this Clause shall alter or affect any coverage granted elsewhere in this policy during the storage or transit subsequent thereto.

59. S.R. & C. C. Endorsement (Form No. 12):

THIS INSURANCE ALSO COVERS:

59.1 Physical loss of or damage to property insured directly caused by strikers, locked-out workmen, or persons taking part in labor disturbances or riots or civil commotions;

59.2 Physical loss of or damage to the property insured directly caused by vandalism, sabotage or malicious acts; and,

59.3 Physical loss of or damage to the property insured directly caused by the act or acts of one or more persons, whether or not agents of a sovereign power, carried out for political, terroristic or ideological purposes and whether any loss, damage or expense resulting therefrom is accidental or intentional; PROVIDED that any claim to be recoverable under this subsection 59.3 be not excluded by the Free of Capture & Seizure Warranty, Extended Radioactive Contamination Exclusion Clause (Extended RACE Clause) or Chemical, Biological, Bio-Chemical and Electromagnetic Exclusion Clause (CBE Clause) in the Policy to which this

endorsement is attached. Notwithstanding the foregoing, coverage under this subsection 59.3 is conditional upon the property insured being in the ordinary course of transit and, in any event, **shall terminate**:

(1) As per the Warehouse to Warehouse and Marine Extension Clauses, 60 Day South American Clause and any other clauses relating to duration of transit contained in or endorsed onto the Policy*; or,*

(2) on delivery to the consignee's or other final warehouse or place of storage at the destination named herein*; or,*

(3) on delivery to any warehouse or place of storage, whether prior to or at the destination named herein, which **The Insured** elects to use either for storage other than in the ordinary course of transit or for allocation or distribution*; or,*

(4) in respect of marine transits, on the expiry of 60 days after completion of discharge overside of the property insured from the vessel at the port of discharge*; or,*

(5) in respect of air transits, on the expiry of 30 days after unloading the property insured from the aircraft at the place of discharge*;*

whichever shall first occur.

59.4 While the property insured is at risk under the terms and conditions of this insurance within the United States of America, the Commonwealth of Puerto Rico, the U.S. Virgin Islands and Canada, this insurance is extended to cover physical loss of or damage to the property insured directly caused by acts committed by an agent of any government, party or faction engaged in war, hostilities or other warlike operations, provided such agent is acting secretly and not in connection with any operation of military or naval armed forces in the country where the described property is situated.

59.5 Nothing in this endorsement shall be construed to cover any loss, damage or expense directly or indirectly arising from, contributed to or caused by any of the following, whether due to a peril insured against or otherwise:

(1) change in temperature or humidity;

(2) the absence, shortage, or withholding of power, fuel, or labor of any description whatsoever during any strike, lockout, labor disturbance, riot or civil commotion;

(3) loss of market or loss, damage or deterioration arising from delay;

(4) hostilities, warlike operations, civil war, revolution, rebellion or insurrection, or civil strife arising therefrom, except to the limited extent that the acts of certain agents acting secretly have been expressly covered above; or,

(5) nuclear reaction, radiation or radioactive contamination, as per Extended RACE Clause;

(6) chemical, biological, bio-chemical or electromagnetic weapon, device, agent or material, as per CBE Clause.

59.6 **The Insured** agrees to report all shipments attaching under this cover and to pay premiums therefore at the rates established by **The Insurer** from time to time.

59.7 This endorsement may be canceled by either party upon forty-eight hours written, telegraphic, telefaxed, or electronic notice to the other party, but such cancellation shall not affect any risks which have already attached hereunder.

60. SALESPERSON'S SAMPLES:

60.1 This policy is extended, subject to its terms and conditions, to cover samples of goods and merchandise, including any associated accessories and equipment that are usual to the business of **The Insured**, and the property of **The Insured** or similar property of others for which **The Insured** may be liable, while in the care, custody or control of **The Insured**'s Sales Representatives and including, but not limited to, while in transit, in storage, or at any place or location.

60.2 **This Insurer** shall not be liable under this Clause for more than **"As Per Declarations Page"** as respects any one Sales Representative or in any one place at any one time.

61. EXHIBITION/TRADE FAIRS/DEMONSTRATIONS/CONSIGNMENTS:

61.1 This policy is extended to cover, subject to its terms and conditions, on property of **The Insured** or property of others while in the care, custody, or control of **The Insured** and for which **The Insured** is legally liable, while on exhibition and/or demonstration and/or consignment and while in due course of transit to and from.

61.2 This policy does not insure against loss or damage caused by or resulting from infidelity and/or dishonesty of **The Insured** or their employees or any person or persons to whom the goods may be entrusted (bailees excepted).

61.3 **This Insurer** shall not be liable under this Clause for more than **"As Per Declarations Page"** as respects any one exhibition, demonstration or consignment or in any one place at any one time.

62. INSTALLATION/EVALUATION:

62.1 This Contract of Insurance is extended to cover the insured property, if the risk of loss or damage is that of **The Insured**, whilst at the customer's premises, awaiting and during evaluation and/or installation, de-installation, awaiting and during testing, awaiting acceptance by the purchaser, and while in process, repair and remanufacture, and shall continue until accepted by the purchaser and/or Technical Sign-Off by the purchaser and/or until **The Insured**'s risk of loss or damage ceases, but in no event to exceed **"As Per the Installation/Evaluation Details Page"** days from date and time of arrival, unless otherwise agreed.

62.2 **This Insurer** shall not be liable under this Clause for more than **"As Per the Installation/Evaluation Details Page"** as respects any one installation at any one place at any one time. If the total value at risk exceeds the limit of liability, **This Insurer** shall be liable for the full amount of loss up to but not exceeding the limits of liability contained in this Contract of Insurance.

62.3 Property insured under this clause to be valued in accordance with the Valuation clause contained in this Contract of Insurance, plus the actual amount of import duty paid or payable (if applicable); loss, if any, shall be adjusted on the same basis subject to the limit of liability specified.

62.4 Property covered under this clause is insured against all risks of physical loss or damage from any external cause per clauses and conditions and limitations otherwise provided for elsewhere in this Contract of Insurance including the cost of installation or rework.

62.5 Each claim for loss or damage shall be adjusted separately and from the amount of the claim, as adjusted, there shall first be deducted the sum of **"As Per the Installation/Evaluation Details Page".**

62.6 This insurance shall not cover loss or damage caused by or arising from the actual installation, operation, or testing of the property covered hereunder in the absence of a concurrent, insured peril.

62.7 In the event of cancellation of this Contract of Insurance, coverage under this clause (except in respect to merchandise in transit) shall automatically terminate as of the effective date of such cancellation.

63. INVENTORY STORAGE:

63.1 It is understood and agreed that coverage is extended to include goods insured temporarily held at store for the purpose of storage and/or processing and/or preparation and/or whilst awaiting transit while at any one Location approved by **This Company** against risks of physical loss or damage from any external cause per clauses and conditions and limitations provided for elsewhere in this Contract of Insurance.

63.1.1 **These Insurers** shall be liable for no more than **"As Per the Inventory Storage Details Page".**

63.2 The Limits of Liability expressed herein are deemed on a 'First Loss' basis.

63.3 For the purpose of this insurance "location" is defined as any building, tank, dock, pier, bulkhead (or group thereof) bounded on all sides by public streets or open waterways or open land space, each of which shall not be less than fifty feet wide, (for the purposes of this definition any bridge or tunnel crossing such street or waterway or open space shall render such separation inoperative).

63.4 Property insured under this clause to be valued in accordance with the Valuation clause contained in **"As Per the Inventory Storage Details Page"** and loss, if any, shall be adjusted on the same basis subject to the limit of liability specified.

63.5 Each claim for loss or damage shall be adjusted separately and from the amount of the claim, as adjusted, there shall first be deducted the sum of **"As Per the Inventory Storage Details Page".**

63.6 Privilege is granted to **The Insured** to insure in foreign currencies, losses to be payable in the same funds. The Limit of Insurance per any one location shall not exceed the Limit of Insurance specified in the Schedule of Approved Locations appearing in the **"As Per the Inventory Storage Details Page".**

63.7 **Extra Expense**:

63.7.1 In consideration of the Additional Premium charged, this policy is extended to Indemnify **The Insured** for any necessary Extra Expense, as herein defined, properly and reasonably incurred by **The Insured**, in order to continue the normal operation of its business, proximately caused by physical loss or damage to, or destruction of, the goods insured by this policy, occurring as a direct result of a peril insured against by this policy.

63.7.2 Underwriters liability shall in no event exceed **"As Per the Inventory Storage Details Page"** any one loss, and in the annual aggregate, for coverage provided by this extension.

63.7.3 The term 'Extra Expense' is defined as the excess (if any) of expenses over the normal cost of business, made necessary in order to provide for the continuous working of **The Insured's** operation after a loss covered under this policy.

63.8 Furniture Fixtures and Equipment (FFE):

63.8.1 It is further understood and agreed that the Storage/Processing/Inventory Clause is extended to include Furniture, Fixtures, Improvements and Betterments, Machinery, Equipment and Computer Equipment and Media (hereinafter called FFE) owned by **The Insured** and/or leased, rented or under the care, custody and control of **The Insured** and for which **The Insured** may be legally liable, while situated at any non-owned location against risks of physical loss or damage from any external cause per clauses and conditions and limitations provided for elsewhere in this Contract of Insurance **"As Per the Inventory Storage Details Page".**

63.8.2 **This Insurer** shall be liable for no more than **"As Per the Inventory Storage Details Page"** any one location in respect of FFE subject to an annual aggregate of **"As Per the Inventory Storage Details Page"** for all locations combined within a policy period. In no event shall the Aggregate for FFE be construed as in addition to any other coverages and/or aggregates as may be provided herein.

63.8.3 Property insured under this clause to be valued **as per Clause 10., Basis of Valuation,** and loss, if any, shall be adjusted on the same basis subject to the limit of liability specified.

63.9 Additional Coverage Extensions – It is understood and agreed that the following coverage extensions shall apply only if noted as INCLUDED on the **"Inventory Storage Details Page":**

63.9.1 Processing - It is understood and agreed that this insurance remains in full force whilst the goods insured are under any process but in no case shall extend to cover damage thereto solely caused by such a process.

63.9.2 Natural Perils - Loss, damage, or expense caused by or resulting from the perils of flood, wind, or earthquake as defined in the **Definitions** attached to this Policy or subsequent amendments thereto.

63.9.3 Spoilage, Deterioration, and Decay – This insurance will pay, in respect of perishable insured interests, for deterioration, decay and or/spoilage only if arising from:

(i) Breakdown or stoppage or derangement of refrigeration machinery, if from causes beyond the control of the Insured – time deductible, if any, **"As Per Inventory Storage Details Page."**
(ii) Loss of integrity in respect of non-mechanical cooling apparatus or devices, if from causes beyond the control of **The Insured**.

63.10 Excluding loss damage or expense caused by or arising or resulting from:

63.10.1 any unexplained loss, mysterious disappearance or loss or shortage disclosed upon taking inventory;

63.10.2 misappropriation, secretion, conversion, infidelity, or any dishonest act on the part of **The Insured** or their employees or agents; bailees for hire excepted;

63.10.3 wear, tear, gradual deterioration or depreciation, inherent vice and/or latent defect and/or obsolescence;

63.10.4 risks excluded by the F.C.& S., S.R.& C.C., EXTENDED RADIOACTIVE CONTAMINATION EXCLUSION WARRANTY WITH U.S.A. ENDORSEMENT and Chemical, Biological, Bio-Chemical, Electromagnetic Exclusion Warranty contained in this marine cargo policy.

63.10.5 loss of time and excluding any claims arising from loss of market.

63.10.6 Coverage under the FFE extension as provided in **63.8** also excludes the following:

a. Any error in machine programming or instructions to machine.

b. Any accounts, bills, evidence of debt, valuable papers, records, abstracts, deeds, manuscripts or other documents except as they may be converted to data processing media form and then only in that form, or any data processing media which cannot be replaced with other of like, kind, and quality.

63.11 This coverage shall be void if **The Insured** or his agent has concealed or misrepresented in writing or otherwise any material facts or circumstances concerning this insurance or the subject thereof, or if **The Insured** or his agent shall make any attempt to defraud **This Company** either before or after a loss.

63.12 IT IS UNDERSTOOD AND AGREED THAT IN THE EVENT OF CANCELLATION OF THE CONTRACT, THE INSURANCE PROVIDED FOR HEREUNDER SHALL TERMINATE IMMEDIATELY UPON SUCH CANCELLATION AND NO CLAIM FOR LOSS OR DAMAGE ARISING AFTER SUCH DATE SHALL BE RECOVERABLE HEREUNDER.

LOSS CLAUSES

64. NOTICE OF LOSS CLAUSE:

Unless instructions have been given to the contrary, **The Insured** shall report to, the broker of record **"As Per Declarations Page"** (for transmission to **This Company**) or to the agents of **This Company**, if there be one at or near the place where the loss occurred or the expenses are incurred, or if there be none in the vicinity to **W.K. Webster & Co.,** Agent, loss, damage and expenses which may become a claim under this insurance as soon as may be practicable after it becomes known to **The Insured** and/or Consignee.

65. PARTIAL LOSS:

65.1 In case of a covered partial loss to the goods and/or merchandise and/or property insured under this policy caused by risks insured against, the loss shall be determined by a separation of the damaged portion of the insured goods and/or merchandise and/or property from the sound and shall be the percentage of damage on the damaged portion as agreed by **The Insured** and **This Insurer.**

65.2 If no percentage is mutually agreed upon, then by public sale of the damaged portion for the account of **The Insured** and by comparison of the amount so realized with the market value of the damaged portion if it were in sound condition on the day of sale.

65.3 At the option of **The Insured**, claims for insured goods and/or merchandise and/or property arriving at destination in a damaged condition may be settled on a "salvage adjustment" basis, with **This Insurer** paying the insured value of the damaged portion after taking credit for any salvage proceeds.

66. CONSEQUENTIAL REDUCTION IN VALUE:

In the event of a partial loss occurring hereunder, which cannot be repaired to the original pre-shipment condition, this policy will respond for the reduction in value due to the loss of original manufacturer's warranty. In no event shall **This Insurer** be liable for more than the insured value of the goods and/or merchandise damaged.

67. PAIR AND SETS:

It is understood and agreed that the loss of or damage to any one item of the goods and/or merchandise insured under this policy which consist of items in a pair or set, shall constitute a total loss of such pair or set.

68. NON-DELIVERY CLAUSE:

In the event the goods and/or merchandise are overdue and unaccounted for, for a period of thirty (30) days, Underwriters will consider said shipment, in whole or in part, a recoverable loss hereunder. Underwriters' reserves its right to investigate such claims for a period up to 60 days from the date the loss is first reported to **This Company**.

69. ACCESS TO PROPERTY:

It is understood and agreed that should any governmental or civil authority deny **The Insured** access to subject-matter insured hereunder, as a result of damage to a building and/or structure and/or conveyance in which it is held from a peril insured against hereunder, such subject-matter insured which cannot be retrieved after a reasonable period of time, but in no case less than 30 days following the insured peril, shall be considered a total loss under the terms of this insurance. Any salvage from subject-matter insured as described above shall be for the benefit of Insurers.

70. JOINT LOSS AGREEMENT:

70.1 In the event of an occurrence which both the Property Insurers and Stock Throughput Insurers agree is insured in whole or in part under both their respective policies of insurance, and in which they further agree with **The Insured** in writing as to the total amount payable under both policies, but there is a disagreement as to how much each Insurer shall pay, such loss shall be settled by payment of the full agreed amount thereof to **The Insured**, each set of Insurers to contribute the sum for which they admit liability plus an amount equal to one-half of the amount that is in disagreement between the Property Insurers, and the Stock Throughput Insurers.

70.2 If one-half of the amount that is in disagreement exceeds the remaining amount of liability payable under either policy, each set of Insurers will pay only the sum equal to that remaining amount of liability under the said policy.

70.3 **The Insured** will cooperate in furnishing information and technical data as may be required by **This Insurer** in order that they may determine final apportionment. The Property Insurers and the Stock Throughput Insurers agree with each other to submit questions in dispute to arbitration, and the arbitrators shall be three in number, one of whom shall be appointed by consent of the other two, and the decision by the arbitrators shall be subject to appeal to the appropriate court or courts.

70.4 This agreement does not change any of the terms and conditions of the policies issued to **The Insured** by both The Property Insurers and the Stock Throughput Insurers.

70.5 In the event of cancellation or termination of either the Property or Stock Throughput Insurance Contracts, this Clause shall automatically become null and void.

71. PROFESSIONAL SERVICE FEES:

In the event of loss or damage covered herein, this insurance also covers expenses incurred by **The Insured**, or by **The Insured's** representatives, for preparing and certifying details of any claims, subject to a sublimit of $50,000. The coverage under this clause shall not apply to fees and costs of attorneys, public adjusters, loss appraisers or loss consultants who provide consultation on coverage or negotiate claims or for salary and wages of employees of **The Insured.**

72. CONSTRUCTIVE TOTAL LOSS:

No recovery for a constructive total loss shall be had under this policy unless (i) the insured goods and/or merchandise and/or property are reasonably abandoned on account of their actual total loss appearing to be unavoidable, or (ii) because they cannot be preserved from actual total loss without incurring an expenditure which, if incurred, **The Insured** reasonably believes would exceed the expected value of the goods and/or merchandise and/or property.

73. SHIPPING EXPENSES CLAUSE:

When the subject-matter insured is not delivered to the destination contemplated due to circumstances beyond the control of **The Insured** this insurance also to pay any charges incidental to shipping which have been or may be incurred by **The Insured**.

74. CONTROL OF DAMAGED MERCHANDISE:

In case of damage to goods and/or merchandise and/or property insured under this policy:

74.1 **The Insured** shall have full right to possession of all goods or products damaged by a peril insured against under this policy and shall retain control of all damaged goods. **The Insured**, exercising a reasonable discretion, shall be the sole judge as to whether goods and/or products damaged by a peril insured against under this policy are fit to use as originally intended or in any other capacity, and no goods deemed by **The Insured** to be unfit for use shall be sold or otherwise disposed of except by **The Insured** or with **The Insured's** consent.

74.2 Notwithstanding the foregoing paragraph, it is also agreed that if any damaged product, damaged partially finished product, or damaged raw material does not comply with the specifications registered with any governmental regulatory body and/or agency that is responsible for, regulates, controls or oversees such products, thus confirming that the integrity of the subject matter insured is in doubt and is therefore in contravention of the Good Manufacturing Practice or similar governing worldwide practices, it is deemed to be sufficient for the purposes of this insurance that the product, partially finished product or raw material be deemed a constructive total loss and may be destroyed.

74.3 If the damaged goods and/or merchandise and/or property are dispatched to the supplier's, manufacturer's, **The Insured's** or other designated facilities for survey and/or testing to determine suitability for sale or use as originally intended, all expenses involved shall be borne by **This Insurer**.

74.4 **The Insured** shall allow Underwriters any salvage obtained by **The Insured** on any sale or other disposition of such goods. Prior to any salvage, any labels or permanent markings or other identifiable characteristics identifying the goods as the product of **The Insured**, shall, at the option of **The Insured**, be removed and the costs of such removal shall be borne by Underwriters.

75. CONTROL OF DAMAGED GOODS AND/OR MERCHANDISE AND/OR PROPERTY SUBJECT TO REGULATORY COMPLIANCE:

If the goods and/or merchandise and/or property insured under this policy are subject to the regulations of the United States Food and Drug Administration (USFDA) or any other authorized governmental bodies or agencies, domestic or foreign, then the following terms and conditions shall apply:

75.1 In the event goods and/or merchandise and/or property insured under this policy have been impacted by a peril insured under this policy, such insured goods and/or merchandise and/or property which **The Insured's** Quality Control Officer or equivalent deems unfit for sale or for use under their interpretation of the regulations of the U.S. Food and Drug Administration (USFDA) or any other authorized governmental bodies or agencies, domestic or foreign, shall be deemed damaged.

75.2 **The Insured** shall have full right to possession of all such goods and/or merchandise and/or property so deemed damaged and any other insured goods and/or merchandise and/or property damaged by a peril insured against under this policy and shall retain control of all such damaged goods. **The Insured**, exercising a reasonable discretion, shall be the sole judge as to whether such goods, merchandise, or property are fit for use as originally intended or in any other capacity, and no goods deemed by **The Insured** to be unfit for use shall be sold or otherwise disposed of except by **The Insured** or with **The Insured's** consent.

75.3 Any goods and/or merchandise and/or property which **The Insured** deems unfit for use may be treated as a constructive total loss payable by **This Insurer**. If the goods and/or merchandise and/or property must be destroyed, any expenses incurred in connection with such destruction shall be borne by **This Insurer**. **This Insurer** shall be given the opportunity to have a representative in attendance during such destruction.

75.4 Should **The Insured** allow any salvage or other disposition of such goods, any labels or permanent markings or other identifiable characteristics, identifying the goods as the product of **The Insured**, shall be removed and costs of such removal shall be borne by **This Insurer**.

76. RIGHT OF FIRST REFUSAL:

In the event of damage to goods and/or merchandise covered under this policy and said goods and/or merchandise are to be sold as salvage, **The Insured** shall have the right of first acceptance of the damaged merchandise providing that their offer is fair and reasonable in the opinion of **This Insurer**.

77. PAYMENT OF LOSS:

All claims are to be paid to **The Insured** within thirty (30) days after satisfactory proof of loss has been filed with **This Insurer**.

78. PAYMENT ON ACCOUNT:

When the claim documents submitted demonstrate, and **This Insurer** and **The Insured** agree, that only the quantum of the claim is yet to be agreed, a payment on account will be made equal to the lower of the amount (i) claimed by **The Insured** or (ii) agreed to by **This Insurer** or the surveyor approved by **This Insurer**, within 10 business days after such agreement.

79. EXPEDITING PAYMENT OF LOSS:

It is agreed that claims for loss of or damage to insured goods and/or merchandise and/or property falling within the scope of this policy which amount to less than $10,000.00, as adjusted, shall be paid by **This Insurer** within 10 days following the submission of the following applicable supporting documents:

(a) bill of lading or air waybill or warehouse receipt;
(b) commercial invoice;
(c) claim against carrier/warehouse/other responsible party;
(d) any writing stating that a loss has occurred, e.g., (but without limitation) statement of claim from **The Insured** or its customer, or exceptions taken on delivery if included with original submission or customer credit memo.

80. SUBROGATION:

80.1 It is agreed that upon payment of any loss, damage or expense under this policy, **This Insurer** shall become subrogated, to the extent of such payment, to the rights of **The Insured** against any carrier, bailee, seller, buyer, other insurer or other third party who may be liable for or who may have an obligation to pay, the loss, damage or expense.

80.2 **This Insurer**, however, may not assert a subrogated claim against a parent, subsidiary or an affiliate of **The Insured** without **The Insured's** prior written permission.

80.3 **This Insurer** may not bring suit solely in **The Insured**'s name without prior written permission from **The Insured**, but if granted, always at **This Insurer's** expense.

80.4 **The Insured** agrees to render all reasonable assistance in the prosecution of subrogated claims by **This Insurer**.

80.5 Any recovery made by **This Insurer** in connection with a subrogated claim shall be shared with **The Insured** on a proportionate basis. **The Insured's** share shall be calculated by multiplying the gross recovery (after deducting only the actual expense of **This Insurer** to prosecute the claim) by the percentage obtained after dividing the sum of any deductible plus any uninsured loss, damage and expense by the sum of the deductible plus any uninsured loss, damage and expense plus the amount of loss, damage and expense paid by **This Insurer**. **This Insurer** retains the balance.

80.6 Notwithstanding anything contained herein to the contrary, **This Insurer** agrees to waive any rights of subrogation against any party whom **The Insured** has released from liability or any party **The Insured** has agreed not to sue.

81. PROTECTION OF SUIT TIME:

81.1 **This Insurer and/or This Company** and **The Insured** agree that, after **This Insurer** has been notified of a claim for loss, damage or expense recoverable under this policy, **This Insurer and/or This Company** shall be responsible for protecting suit time against all persons who may be liable for such loss, damage or expense. **The Insured** agrees to cooperate with **This Insurer and/or This Company** to protect suit time.

81.2 If, solely because of the failure of **The Insured** to (i) give **This Insurer** timely notice of the claim or (ii) cooperate with **This Insurer** to protect suit time, suit time is not protected, **The Insured's** claim will not be vitiated, but the claim may be reduced by the amount of the expected reasonable recovery from the liable party(ies).

82. ERRORS AND OMISSIONS:

This insurance shall not be vitiated by an unintentional error, omission or oversight in making declarations, provided the same be communicated to **This Insurer** as soon as known to **The Insured** and premium paid, if required.

83. BROKERS CLAUSE:

It is a condition of this Policy, and it is hereby agreed that **The Insured's** Brokers, **"As Per Declarations Page"**, shall be deemed to be exclusively the agents of **The Insured** and not of Falvey Cargo Underwriting or Underwriters. Any notice given or delivered by or on behalf of **This Company** to the said Brokers in connection with or affecting this insurance shall be deemed to have been delivered to **The Insured**.

84. CAPTIONS:

The Captions to the Clauses set forth herein are for reference purposes only and shall not be deemed to form part of this policy.

85. PREMIUMS:

This Insurer is entitled to premiums, at rates as agreed on all risks covered herein whether reported or not.

86. INSPECTION OF RECORDS:

This Company shall have the privilege, at any time during business hours, to inspect the records of **The Insured** as respects shipments coming within the terms of this policy.

87. REQUIRED BY LAW:

Any provisions required by law to be stated in this policy by **This Insurer** are deemed to be stated herein.

88. GOVERNING LAW AND JURISDICTION:

This is a Policy of Marine Insurance governed by United States federal maritime law as recognized in the United States Court of Appeals for the Second Circuit, and to the extent the federal maritime law does not provide an applicable rule of law, then by the law of the State of New York, independent of any rules as to choice of law.

89. SUBSTITUTION:

Wherever the words "**This Insurer**" appear in the policy they are deemed to include the plural "**These Insurers**."

90. DECLARATIONS:

90.1 It is a condition of this insurance that **The Insured** is bound to declare to the Broker of Record **"As Per Declarations Page"** for transmission to **This Company** as soon as practicable after it is known to them (**unless otherwise agreed**), each and every shipment coming within the terms hereof, whether arrived or not, underwriters being bound to accept same up to but not exceeding the limit hereinafter agreed. It is also agreed that this insurance shall not be prejudiced by any unintentional delay or omission in reporting hereunder or any unintentional error in the amount or the description of the interest, vessel or voyage, if prompt notice be given to **This Company** as soon as said delay and/or omission and/or error becomes known to **The Insured**.

90.2 Should **The Insured** willfully fail to report shipments covered by this policy, then the policy as to all subsequent shipments shall, at the Company's option, become null and void. However this policy shall not be vitiated by any unintentional delay, error, omission or oversight in making any

declaration that is required to be made under any provision contained in or endorsed on this policy provided a correct declaration is communicated to **This Insurer** as soon as practicable after the delay, error, omission or oversight becomes known to **The Insured's** corporate risk manager or equivalent, and premium paid, if required by **This Insurer**.

91. POLICY NUMBER:

Attached to and forming part of Policy Number **"As Per Declarations Page"** of **This Insurer "As Per Declarations Page."**

92. SIGNATURE OF THESE INSURERS:

This is to certify that this insurance has been arranged herein as specified **"As Per Declarations Page"** as per authority granted **FALVEY CARGO UNDERWRITING, LTD.** With regard to all references in this policy to the "Company", it is understood and agreed that the Company shall be deemed to be **Falvey Cargo Underwriting, Ltd.** In WITNESS WHEREOF, **This Company** has executed, issued and delivered this policy at North Kingstown, Rhode Island **"As Per Declarations Page."**

CATASTROPHIC PERILS DEFINITIONS

EARTHQUAKE

Earthquake is defined as a shaking or trembling of the earth that is tectonic in origin. However, ensuing physical loss, damage or destruction arising from a peril not otherwise excluded herein caused by such Earthquake shall not be considered Earthquake within the terms and conditions of this endorsement.

Each loss by Earthquake shall constitute a single occurrence if more than one earthquake shock occurs within any period of one hundred and sixty-eight (168) hours during the term of this policy, the beginning of said period to be determined by **The Insured.**

WINDSTORM

Windstorm is defined as a storm or weather disturbance which is identified by name by any meteorological authority, such as the National Oceanic and Atmospheric Administration's (NOAA) National Hurricane Center. For purposes of this definition, Windstorm shall include direct physical loss, damage or destruction caused by:

(i) direct action of wind including ensuing storm surge;
(ii) any material, object or debris that is carried, propelled or in any manner moved by such windstorm;
(iii) any tornado(s) that is the result of actions or effects of such windstorm;
(iv) hail that is the result of actions or effects of such windstorm;
(v) lightning that is the result of actions or effects of such windstorm;
(vi) rain or water (not constituting a Flood), whether the rain or water is driven by wind or not, that enters a building or structure insured under this policy through an opening(s) created by the direct action of such windstorm.

However ensuing physical loss, damage or destruction not contained in paragraphs (i) to (vi) above and not otherwise excluded herein shall not be considered Windstorm within the terms and conditions of this endorsement.

FLOOD

Flood is defined as a rising and overflowing of a body of water onto normally dry land including that which results from tsunami, tidal wave, seismic sea wave, or series thereof caused by any one disturbance. Such definition does not include storm surge. However, ensuing physical loss, damage or destruction arising from a peril not otherwise excluded herein caused by such Flood shall not be considered Flood within the terms and conditions of this endorsement.

FALVEY
CARGO UNDERWRITING

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NORTH KINGSTOWN, RHODE ISLAND, 02852
Tel: 401 792-0144
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THE INSURANCE COMPANY SIGNATORY HERETO
(HEREINAFTER CALLED "THIS INSURER")
BY THIS POLICY OF WAR INSURANCE
IN CONSIDERATION OF PREMIUM AS AGREED
DOES INSURE

"As Per Declaration Page"

and all subsidiaries, managed, owned or controlled companies or corporations and joint ventures as may now or hereafter exist (hereinafter referred to as the ASSURED).

(HEREINAFTER REFERRED TO AS "THE ASSURED")

AMERICAN INSTITUTE CLAUSES (DECEMBER 2, 1993)

THIS POLICY OF INSURANCE WITNESSETH, that in consideration of premiums as agreed to be paid The Assurer does make insurance and cause **"As per Declaration Page"** to be insured, lost or not lost, for account of whom it may concern, against War Risks only, in accordance with the terms and conditions hereinafter set forth.

To apply to shipments made on or after **"As Per Declaration Page."**

This Assurer shall not be liable hereunder for more than **"As Per Declaration Page"** by any one vessel.

In cases where the total value(s) at risk on any one vessel exceed(s) the limit of liability as set forth in this Policy, The Assured agrees, nevertheless to report to The Assurer full value(s) at risk and to pay premium thereon at the agreed rates. The Assured further agrees that acceptance of such reports and premium by the Assurer shall not serve to revoke or to overrule the limit of liability set forth in this Policy; however, subject to the limit of liability, The Assurer in accepting these reports does agree to pay partial losses covered by this Policy without reduction by reason of any coinsurance which otherwise may have existed in the absence of this special agreement.

Subject to the provisions of Clause 4 of this Policy, should there be an accumulation of interests exceeding the above limit of liability by reason of any interruption of transit beyond the control of The Assured or by reason of any casualty, and/or after the interests have been discharged from incoming overseas Vessel at an intermediate port or place for on-carriage from that or any other port or place by another overseas Vessel, this Policy shall attach for the full amount at risk (but in no event for more than twice the Policy limit which would be applicable to any one Vessel) provided written notice be given to This Insurer as soon as known to the Assured.

This Policy shall cover only those shipments which are insured against marine risks under Policy No. **"As Per Declaration Page"** of This Assurer, it being agreed that the description of such shipments, the valuations thereof, the voyage, the designation of the overseas Vessel (which shall be construed to include aircraft if included under the marine policy) on which the goods are to be carried and the ports and/or places of loading and discharge, as reported under the said Policy against marine risks, shall be deemed incorporated herein. Notwithstanding the foregoing, this policy shall not cover purely domestic shipments by air between points in the United States of America (excluding Alaska and Hawaii).

Any loss payable hereunder shall be payable in funds current in the United States, to the order of Named Assured thirty days after the full proofs of loss and proofs of interest have been filed with The Insurer.

1. (a) This insurance is only against the risks of capture, seizure, destruction or damage by men-of-war, piracy, takings at sea, arrests, restraints, detainments and other warlike operations and acts of kings, princes and peoples in prosecution of hostilities or in the application of sanctions under international agreements, whether before or after declaration of war and whether by a belligerent or otherwise, including factions engaged in civil war, revolution, rebellion or insurrection, or civil strife arising therefrom; the imposition of martial law, military or usurped power, and including the risks of aerial bombardment, floating or stationary mines and stray or derelict torpedoes. Warranted not to abandon (on any ground other than physical damage to ship or cargo) until after condemnation of the property insured.

(b) This insurance also covers, but only while property insured is on board a waterborne conveyance, loss of or damage to said property directly caused by governmental authorities acting for the public welfare to prevent or mitigate a pollution hazard or threat thereof, provided that the accident or occurrence creating the situation which required such governmental action would have resulted in a recoverable claim under this Policy (subject to all of its terms, conditions and warranties) if the property insured would have sustained physical loss or damage as a direct result of such accident or occurrence.

2. Warranted free from any claim based upon loss of, or frustration of, the insured voyage or adventure caused by arrests, restraints or detainments.

3. This insurance does not cover any loss, damage or expense directly or indirectly arising from, contributed to, or caused by any of the following causes, whether due to a peril insured against or otherwise:

(a) Commandeering, preemption, requisition or nationalization by the government (defacto or otherwise) of the country to or from which the goods are insured.

(b) Seizure or destruction under quarantine, environmental or customs regulations.

(c) Delay, deterioration and/or loss of market.

(d) Nuclear reaction, radiation, or radioactive contamination, regardless of how it was caused.

4. (a) The insurance against the risks enumerated in Clause 1., except the risks of floating or stationary mines and stray or derelict torpedoes, floating or submerged referred to in (b) below, shall not attach to the interest hereby insured or to any part thereof

(i) prior to being on board an overseas Vessel (For the purpose of this Clause 4 an overseas Vessel shall be deemed to mean a Vessel carrying the interest from one port or place to another where such voyage involves a sea passage by that Vessel).

(ii) after being discharged overside from an overseas Vessel at the intended port of place of discharge.

or

after the expiry of 15 days from midnight of the day of arrival of the overseas Vessel at the intended port of discharge, whichever shall first occur.

(iii) after expiry of 15 days from midnight of the day of arrival of the overseas Vessel at an intermediate port or place to discharge the interest for on-carriage from that or any other port of place by another overseas Vessel, but shall reattach as the interest is loaded on the on carrying overseas Vessel. During the said period of 15 days the insurance remains in force whether the interest is awaiting transit or in transit between the overseas Vessels.

(iv) For the purposes of this Clause 4 arrival at the intended port or place of discharge shall be deemed to mean that time when the overseas Vessel first berths, anchors, moors, or is secured in an area subject to regulation by the authorities of such port of place.

(b) The insurance against the risks of floating or stationary mines and stray or derelict torpedoes, floating or submerged, attaches as the interest hereby insured is first loaded on a lighter, craft or vessel after leaving the warehouse at point of shipment in transit for the destination declared hereunder, and ceases to attach as the interest is finally landed from the vessel, craft of lighter prior to delivery to warehouse at such destination.

(c) If the contract of affreightment is terminated at a port or place other than the destination named therein such port or place shall be deemed the intended port or place of discharge for the purpose of this Clause 4.

(d) Shipments by mail, if covered by this Policy, are insured continuously from time of leaving sender's premises until delivered to the place of address.

(e) Shipments by air (other than by air mail), if covered by this Policy are insured subject to the same terms and conditions as shipments by overseas Vessel.

(f) It is a condition of this insurance that the Insured shall act with reasonable dispatch in all circumstances within their control.

(g) If anything contained in this Policy shall be inconsistent with this Clause 4 it shall to the extent of such inconsistency be null and void.

5. This insurance shall not be vitiated by deviation, overcarriage, change of voyage, or by any error or unintentional omission in the description of interest, vessel or voyage, provided the same be communicated to the Insurer as soon as known to the Insured and an additional premium paid if required.

6. And in case of any loss or misfortune, it shall be lawful and necessary to and for the Assured, his or their factors, servants and assigns, to sue, labor and travel for, in and about the defense, safeguard and recovery of the said goods and merchandise, or any part thereof, without prejudice to this insurance; nor shall the acts of the Assured or Assurers, in recovering, saving and preserving the property insured, in case of disaster, be considered a waiver or an acceptance of an abandonment; and to the charges whereof, the said Insurers will contribute according to the rate of quantity of the sum hereby insured.

7. General Average and Salvage Charges payable according to United States laws and usage and/or as per Foreign Statement and/or as per York-Antwerp Rules (as prescribed in whole or in part) if in accordance with the Contract of Affreightment.

8. It is agreed that the reports of shipments made under the Policy against marine risks mentioned above shall be deemed to be reports under this Policy also, and The Assured agrees to pay premiums on all shipments insured under this Policy at the war risk rates of The Assurers as fixed from time to time.

9. No claim shall be payable hereunder which arises from collision, contact with any fixed or floating object (other than a mine or torpedo), stranding, heavy weather or fire unless caused directly (and independently or the nature of the voyage or service which the Vessel concerned or, in the case of a collision, any other Vessel involved therein, is performing) by a hostile act by or against a belligerent power; and for the purpose of this paragraph "power" includes any authority maintaining naval, military or air forces in association with a power.

10. No recovery for a Constructive Total Loss shall be had hereunder unless the property insured is reasonably abandoned on account of its actual total loss appearing to be unavoidable, or because it cannot be preserved from actual total loss without an expenditure which would exceed its value if the expenditure had been incurred.

11. It is agreed that this Policy is a separate and wholly independent contract and is not subject to any terms or conditions of the Policy against marine risks above mentioned (whether physically attached thereto or not) except as such terms or conditions shall have been expressly incorporated herein by reference.

12. This insurance may be cancelled by either party upon forty-eight hours written, telegraphic or telefaxed notice to the other party, but such cancellation shall not affect any shipment on which this insurance has attached under the terms of Clause 4 hereof prior to the effective date of such notice. Shipments on which this insurance has not so attached but for which, prior to the effective date of such notice, bills of lading have been issued and (in the case of exports) Certificates or special policies have been issued and negotiated, shall be covered from the time of loading on the overseas Vessel, as provided in Clause 4, at the rates of The Assurer, provided that, prior to said effective date, such shipments were at the risk of The Assured and were covered under the said Policy against marine risks.

In the event of loss which may give rise to a claim under this policy, prompt notice should be given to These Assurers.

Wherever the words “This Assurer”or “The Assurer” may appear in the policy they are deemed to include also the words “These Assurers.”

REQUIRED BY LAW:

Any provisions required by law to be stated in policies issued by This Assurer shall be deemed to have been stated herein.

In the event that this policy is subscribed to by several Assurers, it is agreed that, upon request These Assurers will issue separate policies covering their subscription.

In WITNESS WHEREOF, this Company has executed, issued and delivered this policy at North Kingstown, Rhode Island **“As Per Declaration Page.”**

Policy Number “As Per Declaration Page”